

[11 & 12 GEO. 5.] *Manchester* [Ch. cxix.]
Corporation (General Powers) Act, 1921.



CHAPTER cxix.

An Act to empower the lord mayor aldermen and citizens of the city of Manchester to construct additional gasworks and to acquire the Stretford Gas Company's undertaking to make further provision in regard to the health local government and improvement of the city and for other purposes. A.D. 1921.
[19th August 1921.]

WHEREAS by the Manchester General Improvement Act 1851 and divers other Acts the lord mayor aldermen and citizens of the city of Manchester (in this Act called "the Corporation") are empowered to construct gasworks and to supply gas within the city and the neighbourhood thereof and in pursuance of the powers conferred upon them they are supplying gas within an area comprising the city part of the urban district of Stretford and the urban districts of Audenshaw Droylsden and Failsworth in Lancashire and the urban district of Cheadle and Gatley the township of Little Moss in the rural district of Limehurst and the townships of Northenden and Northen Etchells in the rural district of Bucklow in Cheshire :

And whereas in order to meet the increasing demand for gas it is expedient to empower the Corporation to acquire lands and to construct gasworks and other works in the townships of Partington and Carrington in the rural district of Bucklow in Cheshire and to lay down mains in those townships and in the townships of Flixton and Davyhulme in the rural district of Barton-upon-Irwell and in the urban districts of Urmston and Stretford in Lancashire :

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And whereas in pursuance of the Stretford Gas Acts 1862 to 1917 as amended by the Stretford Gas (Standard of Calorific Power) Order 1917 the Stretford Gas Company have constructed gasworks and are supplying gas within the urban district of Stretford (except that part of the district which is supplied by the Corporation) and are supplying or are authorised to supply gas in the urban district of Urmston and the townships of Flixton and Davyhulme in the rural districts of Barton-upon-Irwell in Lancashire and the urban district of Ashton-upon-Mersey and Sale and the township of Timperley in the rural district of Bucklow in Cheshire :

And whereas it is expedient to amalgamate the Stretford Gas Company's undertaking with the gas undertaking of the Corporation and with that object the agreement set forth in the Third Schedule to this Act has been entered into between the company and the Corporation for the sale and transfer to the Corporation of the company's undertaking and it is expedient to confirm that agreement and to provide for carrying it into effect and to make further provision in regard to the gas undertaking of the Corporation :

And whereas it is expedient that provision be made as in this Act contained with regard to the control and regulation of premises in the city used for the reception of women for the purposes of childbirth :

And whereas it is expedient that the powers of the Corporation in relation to the health local government and improvement of the city be enlarged as by this Act provided :

And whereas it is expedient to make such other provisions as this Act contains :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Corporation for the following purposes (that is to say) :—

For and in connexion with the construction of certain of the works which the Corporation are authorised to construct by the sections of this Act whereof the marginal notes are respectively "Power to make and maintain gasworks" and "Power to lay gas mains and execute works"	£ 1,640,000
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£ A.D. 1921.

For and in connexion with the purchase
of the undertaking of the Stretford
Gas Company under the scheduled
agreement the payment of any sums
payable to the company their officers
and servants the payment of the costs
charges and expenses of or connected
with the transfer and for the re-
demption of the debenture stock of
the company - - - - - 300,000

And whereas the several works included in such
estimates respectively are permanent works and it is
expedient that the Corporation should be empowered
to borrow money for those purposes as provided by this
Act :

And whereas in relation to the promotion of the
Bill for this Act the requirements of the Borough Funds
Acts 1872 and 1903 have been observed and the approval
of the Minister of Health has been obtained :

And whereas plans and sections showing the lines
and levels of the works authorised by this Act and also
a book of reference containing the names of the owners
and lessees or reputed owners and lessees and of the
occupiers of the lands required or which may be taken
for the purposes or under the powers of this Act were
duly deposited with the respective clerks of the peace
for Lancashire and Cheshire which plans sections and
book of reference are in this Act respectively referred
to as the deposited plans sections and book of reference :

May it therefore please Your Majesty that it may
be enacted and be it enacted by the King's most Excellent
Majesty by and with the advice and consent of the Lords
Spiritual and Temporal and Commons in this present
Parliament assembled and by the authority of the same
as follows (that is to say) :—

PART I.

PRELIMINARY.

1. This Act may be cited as the Manchester Corpo- Short title.
ration (General Powers) Act 1921.

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Corporation (General Powers) Act, 1921.

A.D. 1921.
—
Act divided
into Parts.

2. This Act is divided into Parts as follows (that is to say) :—

- Part I.—Preliminary.
- Part II.—Lands.
- Part III.—Gas.
- Part IV.—Maternity Homes.
- Part V.—Miscellaneous.
- Part VI.—Finance.

Incorporation of Acts.

3. The following Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely) :—

(1) The Lands Clauses Acts with the following exception and modification :—

(A) Section 127 of the Lands Clauses Consolidation Act 1845 (relating to the sale of superfluous lands) is not incorporated with this Act ;

(B) The bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be under the corporate seal of the Corporation and shall be sufficient without the addition of the sureties mentioned in that section ;

(2) The Gasworks Clauses Act 1847 Provided that section 13 of that Act shall be read as if the words “ or any premises ” were inserted after the words “ private building ” ; and

(3) The Gasworks Clauses Act 1871 with the following exceptions and modifications :—

(A) The provisions as to—

(i) a prescribed standard of illuminating power ;

(ii) penalties in respect of a deficiency in illuminating power ; and

(iii) testing for illuminating power ;

contained in sections 12 32 and 36 and in Schedule A. are not incorporated with this Act :

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(B) In their application to the Corporation sections 28 29 30 and 33 of that Act shall be construed as if— A.D. 1921.

(i) the words "calorific power" were substituted therein for the words "illuminating power"; and

(ii) the provisions of this Act with reference to the apparatus for testing the calorific power of gas were substituted for the regulations referred to in section 28 so far as they relate to testing for illuminating power.

4. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there is something in the subject or context repugnant thereto And in this Act unless the subject or context otherwise requires— Interpretation.

- (A) "The city" means the city of Manchester;
- (B) "The Corporation" means the lord mayor, aldermen and citizens of the city of Manchester;
- (C) "The town clerk" and "the medical officer" mean respectively the town clerk and the medical officer of health of the city and include any person duly authorised to discharge temporarily the duties of those offices;
- (D) "The city rate" and "the city fund" mean respectively the city rate and the city fund of the city;
- (E) "The tribunal" means the tribunal to whom any question of disputed purchase money or compensation under this Act is referred in pursuance of the Acquisition of Land (Assessment of Compensation) Act 1919;
- (F) "The Lands Clauses Acts" means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 and by this Act;
- (G) "The company" means the Stretford Gas Company;
- (H) "The company's Acts" means the Stretford Gas Acts 1862 to 1917 and the Stretford Gas (Standard of Calorific Power) Order 1917;

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- (I) "The scheduled agreement" means the agreement set forth in the Third Schedule to this Act;
- (J) "The day of transfer" has the same meaning as in the scheduled agreement;
- (K) "The company's district" means so much of the urban district of Stretford as is not at the passing of this Act supplied with gas by the Corporation the urban districts of Ashton-upon-Mersey Sale and Urmston and the townships of Flixton and Davyhulme in the rural district of Barton-upon-Irwell and the township of Timperley in the rural district of Bucklow;
- (L) "Maternity home" means any premises in the city used or represented as being or intended to be used (whether regularly or on any occasion) for the reception of a woman or women for the purposes of childbirth where any payment or reward is made or given by or on behalf of any woman received therein in respect of such reception but does not include any house flat or other self-contained premises not regularly so used taken and held by any woman (or by the husband of such woman) for the purpose of accommodating her during her confinement;
- (M) "Local Act" means any Act of Parliament or Order of a Government department for the time being in force within the city or relating to the Corporation or to any of their undertakings and includes any of the Acts of Parliament and Orders set forth in the Third Schedule to the Manchester Corporation Act 1909 and in the Fifth Schedule to this Act; and
- (N) "The overseers" means the overseers of the township of Manchester within the city.

Authentica-
tion of
notices &c.

5. Any summons demand notice order or document (other than a conveyance contract or security) to be given made delivered or served by or on the part of the Corporation under this Act shall if signed by the town clerk be of the same effect as if sealed by the Corporation and the provisions of section 51 (Further provision as to authentication proof and service of orders and notices)

of the Manchester Corporation Waterworks and Improvement Act 1867 shall apply to every such summons demand notice order or other document. A.D. 1921

6. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Corporation after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the county in which the lands are situate for the correction thereof and if it appear to the justices that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the clerk of the peace for the county and a duplicate thereof shall also be deposited with the town clerk and such certificate and duplicate respectively shall be kept by such clerk of the peace and town clerk respectively with the other documents to which the same relate and thereupon the deposited plans or book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Corporation to take the lands and execute the works in accordance with such certificate. Correction of errors &c in deposited plans and book of reference.

7. A copy of the deposited plans sections and book of reference respectively shall be kept by the town clerk who shall permit any person to inspect the same at reasonable times and to make copies of and extracts from the same respectively on payment by any such person of one shilling for every inspection and of the further sum of one shilling for every hour during which such inspection shall continue after the first hour and after the rate of sixpence for every one hundred words copied therefrom. Plans &c. to be open to inspection.

8. Copies of the deposited plans sections and book of reference or of any alteration or correction thereof or extract therefrom certified to be correct by the clerk of the peace for the county in which the lands shown on the plans are situate or by the town clerk (which certificate such clerk of the peace and town clerk respectively shall give to all parties interested when required) shall be received in all courts of justice or elsewhere as *prima facie* evidence of the contents thereof. Certified copies of plans &c. to be evidence.

A.D. 1921.
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Arbitration.

9. Where under this Act any question or dispute is to be referred to an arbitrator or to arbitration the reference shall be subject to the provisions of the Arbitration Act 1889 and except where otherwise provided the arbitrator shall failing agreement be appointed by the President of the Institution of Civil Engineers on the application of either party.

PART II.

LANDS.

Power to
acquire
lands.

10. Subject to the provisions and for the purposes of this Act the Corporation may enter on take appropriate and use all or any of the lands delineated on the deposited plans and described in the deposited book of reference.

Acquisition
of ease-
ments.

11.—(1) The Corporation may in lieu of acquiring any lands for the purposes of the works authorised by the section of this Act whereof the marginal note is “Power to lay gas mains and execute works” where the same are intended to be constructed underground acquire such easements or rights only in such lands as they may require for such purposes (including the making enlarging renewing maintaining repairing inspecting cleansing managing using working and obtaining access to such works) and may give notice to treat in respect of such easements or rights describing the nature thereof and the rights which the Corporation require for or incidental to the said purposes and the restrictions subject to which the owners and occupiers may use the lands and the provisions of the Lands Clauses Acts and of the Acquisition of Land (Assessment of Compensation) Act 1919 shall apply to and in respect of the acquisition of such easements or rights as fully as if the same were lands within the meaning of those Acts.

(2) As regards any lands in respect of which the Corporation have acquired easements or rights only under the provisions of this section the Corporation shall not be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall subject to such easements or rights and any other restrictions imposed upon the owners and occupiers have the same rights to use and cultivate the said lands at all times as if this Act had not passed.

(3) Provided that nothing in this section contained shall authorise the Corporation to acquire by compulsion any such easement or right or to impose any such restriction in any case in which the owner in his particulars of claim shall require the Corporation to acquire the lands in respect of which they shall have given notice to treat for an easement or right or to impose any such restriction only. A.D. 1921.
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(4) Every notice to treat for the acquisition of an easement or right or the imposition of restriction shall either contain or be endorsed with a copy of this section.

12.—(1) Whereas in the construction of the works authorised by this Act or otherwise in the exercise by the Corporation of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Corporation and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect :— Owners may
be required
to sell parts
only of
certain
premises.

(A) The owner of and persons interested in any of the properties whereof the whole or part is described in the First Schedule to this Act and whereof a portion only is required for the purposes of the Corporation or each or any of them are hereinafter in this section included in the term “the owner” and the said properties are hereinafter referred to as “the scheduled properties” :

(B) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Corporation that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Corporation such portion only without the Corporation being obliged or compellable to purchase the whole the Corporation paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise :

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- (c) If within such twenty-one days the owner shall by notice in writing to the Corporation allege that such portion cannot be so severed the tribunal shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled properties specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Corporation have compulsory powers of purchase) can be so severed :
- (D) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Corporation the portion which the tribunal shall have determined to be so severable without the Corporation being obliged or compellable to purchase the whole the Corporation paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal :
- (E) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the determination of any matters under this section shall be borne and paid by the owner :
- (F) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Corporation may withdraw their notice to treat and thereupon they shall pay to the owner all costs

charges and expenses reasonably and properly incurred by him in consequence of such notice : A.D: 1921.

- (c) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Corporation in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

(2) The provisions of this section shall be in force notwithstanding anything contained in the Lands Clauses Consolidation Act 1845 and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

(3) The provisions of this section shall be stated in or endorsed on every notice given thereunder to sell and convey any premises.

13. For the purposes of determining any question of disputed compensation payable in respect of lands taken under the powers of this Act the tribunal shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the land created after the first day of November nineteen hundred and twenty if in the opinion of the tribunal the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act. Compensation in case of recently acquired interest.

14. The powers of the Corporation for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of five years from the thirty-first day of December nineteen hundred and twenty-one. Period for compulsory purchase of lands.

A.D. 1921.

Power to
purchase
additional
lands by
agreement.

15. The Corporation in addition to any other lands to be acquired by them in pursuance of this Act may by agreement purchase take on lease acquire and hold further lands for the purposes of this Act but the quantity of lands held by the Corporation in pursuance of this section shall not at any time exceed fifty acres:

Provided that the Corporation shall not create or permit the creation or continuance of any nuisance on any such lands.

Persons
under dis-
ability may
grant ease-
ments &c.

16. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Corporation any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Proceeds of
sale of sur-
plus lands.

17.—(1) So long as any lands remain to be acquired by the Corporation under the authority of this Act they may (so far as they consider necessary) apply any capital moneys received by them on the re-sale or exchange of or by leasing any lands acquired under the authority of this Act in the purchase of lands so remaining to be acquired but as to capital moneys so received and not so applied the Corporation shall apply the same in or towards the extinguishment of any loan raised by them under the powers of this Act and such application shall be in addition to and not in substitution for any other mode of extinguishment provided by this Act except to such extent and upon such terms as may be approved by the Minister of Health.

(2) Provided that—

(A) The amount to be applied in the purchase of lands under this section shall not exceed the amount for the time being unexhausted of the borrowing powers conferred by this Act for the purpose of such purchase;

(B) The borrowing powers conferred by this Act for the purpose of such purchase shall be reduced to the extent of the amount applied in the purchase of lands under the provisions of this section.

18.—(1) All private rights of way over any lands which the Corporation are authorised by this Act to acquire compulsorily shall as from the date of the acquisition of such lands by the Corporation be extinguished. A.D. 1921.
Extinction
of private
rights of
way.

(2) Provided that the Corporation shall make full compensation to all persons interested in respect of any such rights and such compensation shall be settled in manner provided by law with reference to the taking of lands otherwise than by agreement.

19. The Corporation may during the execution and for the purposes of any work by this Act authorised stop up any street within the limits of deviation shown on the deposited plans and prevent all persons other than those bonâ fide going to or returning from any houses buildings or lands in the street from passing along and using the same for any reasonable time but convenient access to the houses buildings or lands in such street shall be provided by the Corporation. Temporary
stoppage of
streets.

PART III.

GAS.

20.—(1) Subject to the provisions of this Act the Corporation may upon the lands described in the Second Schedule to this Act and as from the day of transfer upon the lands which the company are by the company's Acts authorised to use for the manufacture of gas erect maintain alter improve and renew gasworks with all necessary machinery and apparatus and do all such acts as may be proper for making and storing gas and for supplying gas within the area in which they are for the time being authorised to supply gas and may also upon the said lands work up and convert the residual products arising directly or indirectly from the manufacture of gas by them. Power to
make and
maintain
gasworks.

(2) The Corporation may also—

(A) Purchase the residual products arising from the manufacture of gas by other gas undertakers and therewith manufacture other products of the same kind as the Corporation are manufacturing from their own residual products Provided that the quantity of any residual product so purchased by the Corporation in any year shall not exceed one-third

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of the quantity of the like residual product which shall in that year arise directly or indirectly from the manufacture of gas by them; and

- (B) Purchase from other gas undertakers and elsewhere and use the materials required to work up and convert the residual products so arising from their own manufacture of gas or purchased as aforesaid.

But the Corporation shall not manufacture chemicals exclusively from raw materials purchased from sources other than gas undertakings or in the manufacture of which the use of residual products produced by the Corporation or purchased from other gas undertakings is merely subsidiary.

Power to
lay gas
mains and
execute
works.

21.—(1) Subject to the provisions of this Act the Corporation may in the lines shown on the deposited plans and where levels are shown on the deposited sections according to those levels lay down make maintain alter improve enlarge extend renew and use the following works together with works and conveniences in connexion therewith (that is to say):—

- (A) A gas main or gas mains (including bridges for carrying such main or mains over the River Mersey and the Bridgewater Canal) commencing at the gasworks the construction of which is authorised by this Act and terminating in Chester Road in the urban district of Stretford opposite to Throstle Nest Lane:
- (B) A private road in the township of Partington passing under the Cheshire Lines Railway by means of a bridge and over the Manchester Ship Canal Company's railway by means of a level-crossing commencing in the lands described in paragraph (2) of the Second Schedule to this Act and terminating in the lands described in paragraph (1) of that schedule.

(2) In constructing the works authorised by this section the Corporation may deviate laterally to any extent not exceeding the limits of deviation shown on the deposited plans and may deviate vertically from the levels shown on the deposited sections to any extent not exceeding five feet.

22. The provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes shall apply with the necessary modifications to the construction laying down and maintenance in any street or road of the gas mains authorised by this Part of this Act. A.D. 1921.
Application
of Gasworks
Clauses Act
1847 to gas
mains.

23.—(1) The Corporation may construct the new footpaths and footbridge shown by red dotted lines on the plan four copies of which are signed by Sir William Middlebrook the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred (one of which plans has been deposited in the Parliament Office of the House of Lords one in the Private Bill Office of the House of Commons one in the office of the town clerk and one in the office of the clerk to the Bucklow Rural District Council) together with the footbridge shown on that plan over the railway of the Manchester Ship Canal Company and may stop up such of the existing footpaths as are shown and coloured brown on the said plan but the Corporation shall not stop up the existing footpaths until two justices have certified that the new footpaths and footbridge have been completed to their satisfaction and opened for public traffic. Diversion of
footpaths.

(2) The footpath to be constructed from the footbridge over the said railway to Common Lane shall be nine feet in width.

(3) As from the stopping up of any footpath in pursuance of subsection (1) of this section all rights of way over and along the same shall be extinguished and the Corporation may appropriate and use for the purposes of their undertaking the site of the portion of the footpath stopped up as far as the same is bounded on both sides by lands of the Corporation and the site of such portion of footpath shall be vested in them.

(4) The Corporation shall make full compensation to all persons interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by law with reference to the taking of lands otherwise than by agreement.

(5) Copies of the said plan deposited in the office of the town clerk certified by him to be true copies shall be received in all courts of justice and elsewhere as *primâ facie* evidence of the contents of such plan.

A.D. 1921.

Accommo-
dation for
workmen
employed on
construction
of works.

24.—(1) The Corporation shall erect fit up and maintain or provide—

- (A) such huts or buildings for the accommodation of the workmen employed in and about the construction of the gasworks authorised by this Act;
- (B) such hospital accommodation for the treatment of cases of sickness or accident among such workmen including accommodation for dealing with infectious diseases;

as shall be reasonably necessary having regard to the accommodation available in the neighbourhood of or conveniently accessible from the said gasworks and shall provide and maintain proper and sufficient sanitary accommodation in connexion with every such building and hospital.

(2) The Corporation shall pay all reasonable costs and expenses incurred in respect of the medical and surgical treatment of any workman employed on the construction of the said gasworks who is treated in any hospital accommodation provided by them except in so far as such costs and expenses are payable under the provisions of the National Health Insurance Acts 1911 to 1920 or otherwise.

(3) The medical officer of health of the Bucklow Rural District Council (in this section called "the rural council") shall be entitled at any time to enter into and inspect and examine any accommodation afforded under this section in order to ascertain whether overcrowding exists therein and whether proper and sufficient sanitary arrangements are provided.

(4) The Corporation shall give such officer all facilities and information which he requires for the purpose of the performance of his duties including the right to enter upon the said gasworks and any person obstructing such officer in the performance of his duty under this section shall be liable on summary conviction to a fine not exceeding forty shillings.

(5) If at any time it appears to the rural council that the Corporation have failed to afford or maintain accommodation in accordance with subsection (1) of this section the Corporation shall afford and maintain such accommodation as the rural council may reasonably require

Provided that if within fourteen days after the receipt of notice of any requirement of the rural council under this subsection the Corporation give notice to the rural council that they dispute the reasonableness of any such requirement the difference shall be determined by the Minister of Health on the application of either of the parties to the difference and the Minister of Health may make such requirements (if any) in variation of the requirements of the rural council as they may think fit.

A.D. 1921

(6) If the Corporation fail to afford and maintain accommodation in accordance with the provisions of this section they shall be liable on summary conviction to a penalty not exceeding twenty pounds and to a further daily penalty not exceeding five pounds for every day on which the offence is continued after conviction and such penalties may be recovered by the rural council.

(7) Any expenses incurred by the rural council in carrying out the provisions of this section shall be repaid to the rural council by the Corporation and shall be recoverable as a debt due from the Corporation to the rural council.

(8) The Corporation shall pay to the Minister of Health any expenses incurred by that Minister under this section including a sum not exceeding three guineas a day for the services of any inspector in connexion with any local inquiry or investigation which they may consider necessary in the exercise of their powers under subsection (5) of this section and the expenses of any witnesses summoned by the inspector.

25. The scheduled agreement is hereby confirmed and made binding upon the parties thereto and effect may and shall be given thereto accordingly subject to such modifications (if any) as may be agreed between the said parties in writing under their respective common seals :

Confirma-
tion of
scheduled
agreement.

Provided that section 120 of the Local Government Act 1888 as applied by paragraph (17) of the scheduled agreement shall for the purposes thereof have effect as if the Minister of Health were therein mentioned instead of the Treasury.

26. The debenture stock of the company outstanding at the day of transfer and the interest thereon as from the date on which such interest was last payable before

Debenture
stock to
continue
charge on

A.D. 1921. the said day shall thereafter continue to be a charge on
transferred the undertaking of the company in the hands of the
under- Corporation to the same extent and with the same
taking. incidents as if this Act had not been passed but with the
substitution of the Corporation for the company in
respect of such debenture stock.

Redemp- 27.—(1) The Corporation may by agreement with
tion of the holder of any portion of the debenture stock of the
debenture company at any time substitute for the stock so held by
stock of him any mortgage or other security of the Corporation
company by or pay off the amount secured by such debenture stock
Corpora- and redeem the security with moneys borrowed or raised
tion. under this Act and the holder of any such debenture
stock whether or not he is a trustee or under any dis-
ability may agree with the Corporation to accept any
mortgage or other security of the Corporation in lieu
of money in consideration for his debenture stock.

(2) Any security under this section substituted for
any debenture stock shall be held in the same rights on
the same trusts and subject to the same powers provisions
charges and liabilities as those in on or subject to which
the debenture stock was held immediately before the
substitution and so as to give effect to and not to revoke
any deed will or other instrument or testamentary or
other disposition disposing of or affecting the debenture
stock and every such deed will instrument or disposition
shall take effect with reference to the whole or a pro-
portionate part as the case may be of the substituted
security.

(3) The Corporation shall make provision for the
extinction of the debenture stock of the company and
of any mortgage or other security of the Corporation
substituted for the same by means of a sinking fund to be
formed and maintained in accordance with the provisions
of section 45 (As to repayment of borrowed moneys) of the
Manchester Corporation Act 1891 so far as applicable
so as to purchase and extinguish or to be in a position
to purchase and extinguish the said debenture stock or
security within a period of thirty years from the day
of transfer and if at the end of that period the said
debenture stock or security is not wholly extinguished
then the Corporation shall so long as they are liable to
pay interest thereon apply in or towards payment thereof
the annual income arising from the said sinking fund.

28.—(1) Subject as between the Corporation and the company to the provisions of the scheduled agreement no action suit prosecution or other proceeding whatsoever commenced either by or against the company shall abate or be discontinued or prejudicially affected by reason of the transfer to and vesting in the Corporation of the undertaking of the company but the same shall continue and take effect either in favour of or against the Corporation in the same manner in all respects as the same would have continued and taken effect in relation to the company if the transfer had not been made and all penalties incurred by reason of any offence against the provisions of any regulations of the company previously to the day of transfer may be sued for and all offences committed against such provisions previously to the day of transfer may be prosecuted by the Corporation in such or the like manner to all intents and purposes as such penalties might have been sued for or such offences prosecuted if the transfer had not taken place and all rents rates and moneys payable to the company prior to the day of transfer may be sued for and recovered by the Corporation in the same manner in all respects as the same might have been sued for and recovered by the company if this Act had not been passed.

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—
 Actions &c.
 not to abate
 and penal-
 ties to be
 recoverable..

(2) This section shall not apply to any proceedings relating to the amount due to the shareholders of the company in respect of their several shares in the company and the dividends accrued due thereon up to the day of transfer.

29. Except as otherwise provided by this Act all agreements contracts deeds and other instruments affecting the company and in force at the day of transfer shall after that day be as binding and of as full force and effect against or in favour of the Corporation and may be continued and enforced as fully and effectually as if instead of the company the Corporation had been a party thereto.

Contracts to
 be binding
 on Corpora-
 tion.

30. All books and documents which if the transfer had not been made would have been evidence in respect of any matter for or against the company shall be admitted in evidence in respect of the same and the like matter for or against the Corporation.

Books &c;
 to remain
 evidence.

A.D. 1921.

Company to
wind up
affairs.

31.—(1) From and after the day of transfer the company shall continue to exist only for the purpose of receiving and recovering the sums payable to the company under the scheduled agreement and distributing or otherwise applying the same and of winding up the affairs of the company and carrying into effect the purposes of this Act so far as they relate to the company and the directors of the company who are in office at the day of transfer and the survivors or survivor of them shall continue without re-election to hold the office of directors of the company until the date of the dissolution of the company and they or a majority of them shall have full power and authority to take all necessary proceedings for carrying into effect the several purposes of this section.

If the number of directors of the company be reduced by death resignation or otherwise below three before the completion of such winding-up the continuing directors shall from time to time choose a shareholder or shareholders of the company to fill the vacancy or vacancies so caused and the shareholder or shareholders so chosen shall be deemed to be directors of the company and shall hold office as such until the said date of dissolution :

Provided that unless and except so far as may be agreed between such shareholder or shareholders and the said continuing directors such shareholder or shareholders shall not be entitled to receive any part of the remuneration payable to the directors under subsection (2) of the section of this Act of which the marginal note is "Distribution of company's assets" :

(2) As soon as may be practicable after the day of transfer the directors of the company shall proceed to wind up the affairs of the company and shall pay the debts and liabilities of the company (other than such as are to be discharged by the Corporation) and subject to the payment thereof shall distribute the surplus moneys of the company to and among the several persons who at the day of transfer are the registered holders of shares in the capital of the company or their respective executors administrators or assigns in accordance with the provisions of the section of this Act whereof the marginal note is "Distribution of company's assets" and for the purpose of such distribution the several persons whose names shall appear in the books of the company

at the day of transfer to be the proprietors of shares therein shall unless the contrary be proved to the satisfaction of the directors be considered to be shareholders of the company and the receipt in writing of such persons or of their executors administrators or assigns or of the committee or guardian of the estate of any such person who shall be an idiot lunatic or minor shall be an effectual discharge to the company and the directors thereof for the money therein expressed to be received and shall exonerate them from any obligation affecting the share or interest in respect whereof such payment is made: A.D. 1921.

(3) Where the directors of the company are for six months after the day of transfer unable after diligent inquiry to find the person to whom any money is payable or where any money is payable to a person who or whose committee cannot give an effectual receipt for the same the directors may pay the money as nearly as may be in manner provided for payment of money into court by any Act for the time being in force for the relief of trustees and such Act shall apply with all necessary modifications to such money and where the amount does not exceed five hundred pounds the directors may pay the same into the county court of Lancashire holden at Salford and every such payment into court shall effectually discharge the company and directors from all further liability with respect to such money.

(4) Upon the purposes specified in this section being fulfilled the company shall by virtue of this Act be dissolved.

32. The purchase money payable to the company under clause 2 of the scheduled agreement shall be applied as follows (that is to say):— Distribu-
tion of
company's
assets.

(1) In payment (except so far as the same are to be discharged by the Corporation) of the debts and liabilities of the company including all legal and other charges and expenses incurred by the company of and incident to the negotiating completing and carrying out of the scheduled agreement and obtaining the sanction of Parliament thereto and the distribution of the said purchase money and the winding-up and dissolution of the company;

(2) In payment to the directors of the company by way of remuneration for their services in

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negotiating completing and carrying out the scheduled agreement and winding up the company of the sum of ten thousand pounds to be divided between them in such manner or proportions as they may agree;

(3) In payment of the sum of three thousand pounds by way of gratuities to such of the officials of the company and in such manner or proportions as the directors of the company may in their discretion determine; and

(4) The balance of the said purchase money shall be distributed amongst and paid to the shareholders of the company in proportion to the amount of the dividends payable for one year at the maximum authorised rates on the shares held by them respectively.

Partial repeal of company's Acts.

33. Subject to the provisions of this Act and of the scheduled agreement the company's Acts shall as from the day of transfer be repealed with the exception of the enactments set forth in the Fourth Schedule to this Act and those enactments shall apply and have effect as if the Corporation were referred to therein instead of the company.

Extension of Corporation's area for supply of gas.

34. On and after the day of transfer the area within which the Corporation are authorised to supply gas shall be extended so as to include so much (if any) of the company's district as is not already included in that area and subject to the provisions of this Act the Acts relating to the Corporation's gas undertaking and the supply of gas by them shall have effect as if the whole of the company's district had originally been included therein and the Corporation shall have within that district all such powers and authorities with respect to the supply of gas and in any way incident or relating thereto as they have in the area within which they are now authorised to supply gas.

Commencement of certain provisions of this Act.

35. The sections of this Act whereof the marginal notes are respectively—

Standard of calorific power;

Pressure;

Price of gas;

shall come into operation within the company's district on the day of transfer and in the remainder of the area

within which the Corporation are authorised to supply gas on the thirtieth day of June nineteen hundred and twenty-two. A.D. 1921. —

36.—(1) Within three months after the date when the provisions of this section come into operation at the respective prescribed testing places or such further time as the Board of Trade may allow the Corporation shall provide at the prescribed testing places apparatus for testing the calorific power of the gas supplied by them similar to the apparatus for the time being prescribed by the metropolitan gas referees for testing the calorific power of the gas supplied by the companies referred to in the London Gas Act 1905. Standard of calorific power.

(2) The prescribed testing places are the following gasworks of the Corporation :—

- (A) Bradford Road Gasworks;
- (B) Rochdale Road Gasworks;
- (C) Gaythorn Gasworks;
- (D) Droylsden Gasworks;
- (E) Stretford Gasworks.

(3) The gas supplied by the Corporation shall when tested in the mode and under the conditions for the time being prescribed by the metropolitan gas referees be of a calorific power of not less than four hundred and fifty British thermal units and in the interpretation of this Act the expression "standard calorific power" shall mean four hundred and fifty British thermal units and the expression "calorific power" shall mean gross calorific power per cubic foot of gas :

Provided that if at any time application is made to the Board of Trade by the Corporation or by any body or person who may appear to the Board of Trade to have a substantial interest in the matter to reduce or increase the standard calorific power the Board of Trade after hearing the parties and any other persons who appear to the Board to be interested may make such reduction or increase of the standard calorific power as they think fit.

(4) Not more than one testing for calorific power shall be made on any one day Provided that if on any occasion of testing the calorific power of the gas is found to be below the standard calorific power a second testing shall be made on the same day after an interval of not less

A.D. 1921. — than one hour and the average of the two testings shall be deemed to be the calorific power of the gas on that day.

(5) If on any day the calorific power of the gas supplied by the Corporation when tested as required by this section is below the standard calorific power by more than five per centum the Corporation shall be liable to the following penalties in respect of any deficiency beyond such last mentioned margin (that is to say) :—

- (A) If the deficiency does not exceed fourteen British thermal units a sum not exceeding two pounds :
- (B) If the deficiency exceeds fourteen British thermal units but does not exceed twenty-eight British thermal units a sum not exceeding five pounds :
- (C) If the deficiency exceeds twenty-eight British thermal units then for each complete twenty-eight British thermal units of defective power a sum not exceeding ten pounds.

Pressure.

37.—(1) All gas supplied by the Corporation to any consumer of gas shall be supplied at such pressure as to balance a column of water not less than two inches in height at the main or as near as may be to the junction therewith of the service pipe supplying the consumer.

(2) Any gas examiner appointed under the Gasworks Clauses Act 1871 may for the purposes of this Act subject to the terms of his appointment at a testing place or at any public lamp as and when he thinks fit test the pressure at which the gas is supplied. The Corporation shall afford to the examiner all reasonable facilities for making the test.

Saving as to penalties.

38. No penalty shall be incurred by the Corporation for neglect or refusal to give a supply of gas in accordance with the enactments relating to them or for insufficiency of pressure defect of calorific power or excess of impurity in the gas supplied by them in any case in which the court having cognizance of the case are of opinion that such neglect refusal insufficiency defect or excess was occasioned by unavoidable cause or accident or by any circumstance beyond the control of the Corporation.

Period of error in defective meter.

39.—(1) In the event of any meter used by a consumer of gas being tested in manner provided by

the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be proved to have first arisen during the then current quarter. A.D. 1921.

(2) The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Corporation shall be paid by or to the Corporation to or by the consumer as the case may be and shall be recoverable in the like manner as gas charges are recoverable by the Corporation.

40.—(1) The price to be charged by the Corporation for gas supplied by them to persons who shall burn the same by meter shall not at any time exceed five shillings per thousand cubic feet. Price of gas.

(2) Provided that within one year from the passing of this Act the Corporation shall apply to the Board of Trade for an order under section 1 (Power to substitute new basis of charges) of the Gas Regulation Act 1920 and the Board of Trade may by such order authorise the Corporation to charge a maximum price per therm corresponding as nearly as may be to the maximum price authorised by this section without any addition in respect of increases in the costs of the production and supply of gas which have occurred since the thirtieth day of June nineteen hundred and fourteen.

41. From and after the reading of the meter indices in respect of the quarter ending the thirty-first day of December nineteen hundred and twenty-one and until the completion of any sale of the company's undertaking to a joint board in accordance with the section of this Act whereof the marginal note is "Purchase by district councils of company's undertaking" the price at which gas shall be supplied by the Corporation to consumers or for the purpose of public lighting within the company's district and within so much of the urban district of Stretford as is now supplied by the Corporation shall not be higher than the price charged by the Corporation for gas supplied in like quantities to consumers within the city or (as the case may be) the price credited for gas supplied for public lighting therein and the charges (if any) for the hire of meters fittings and cookers shall be the same within the city and the aforesaid districts. Equality of charges for gas.

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Works to
form part
of gas un-
dertaking.

42. Works constructed under this Part of this Act and the works acquired by the Corporation in pursuance of this Part of this Act and of the scheduled agreement shall for all purposes whatsoever be deemed to be part of the gas undertaking of the Corporation as if they had been authorised by and included or referred to in the Acts relating to that undertaking.

Purchase by
district
councils of
company's
under-
taking.

43.—(1) If the urban district councils of Stretford Urmston Ashton-on-Mersey and Sale and the rural district councils of Barton-upon-Irwell and Bucklow or any two or more of such councils jointly (which councils are in this section called “the councils”) shall introduce a Bill in the next session of Parliament and bonâ fide promote the same for an Act to provide for the constitution of a joint board (in this section called “the board”) comprising representatives of the councils and to empower and require the board to purchase from the Corporation and to empower and require the Corporation to sell to the board for the consideration hereinafter mentioned the whole of the undertaking of the company as described in the scheduled agreement on and subject to the terms and conditions therein contained so far as the same are applicable the Corporation shall not directly or indirectly oppose such Bill except in so far as may be necessary in order to secure the insertion therein of provisions to protect their interests and pending the promotion of such Bill the Corporation shall afford the councils all reasonable facilities for inspection of the books of the company and of the Corporation with respect to the working and management of such undertaking.

(2) The consideration for the said sale and purchase shall be as follows :—

(A) The board shall pay to the Corporation all sums paid or payable by the Corporation to the company or their officials or employees under or in pursuance of the scheduled agreement :

(B) The board shall take over and assume full liability to repay to the holder or holders of the debenture stock issued by the company then outstanding and (in case any of such debenture stockholder or holders shall have been repaid by the company or by the Corporation) pay

to the Corporation the amount paid to such debenture stock holder or holders : A.D. 1921.

- (c) The board shall pay and discharge all debts and obligations for the payment and discharge of which the Corporation are liable under the scheduled agreement :
- (d) The board shall repay to the Corporation all sums expended by them in effecting additions to or improvements of the said undertaking but the Corporation shall not be entitled to be repaid any sum expended in effecting any such addition or improvement if the cost thereof exceeds one hundred pounds unless the councils or a majority of them shall have consented to the making of such addition or improvement Provided that such consent shall not be unreasonably withheld and if any question shall arise as to whether it is unreasonably withheld that question shall be determined by the Board of Trade.

(3) If the board purchase the said undertaking the sale and purchase shall take effect as from the day of transfer and the board shall be entitled to the money received from the carrying on of the said undertaking from the day of transfer until the completion of the said sale and purchase and shall repay to the Corporation all money properly expended by them in connexion with the carrying on of the said undertaking and indemnify the Corporation against any liability incurred or accruing in connexion therewith and shall also repay to the Corporation the interest paid by them or due or accruing due from them on—

- (A) Money borrowed for the purpose (c) mentioned in the section of this Act whereof the marginal note is "Power to borrow";
- (B) The debenture stock of the company; and
- (C) Any money expended by the Corporation for effecting the additions to and improvements of the said undertaking the cost of which is to be repaid by the board.

(4) As from the completion of the sale and purchase of the said undertaking to and by the board the sections of this Act of which the following are the marginal notes

A D. 1921: shall have effect with any necessary modifications and as if the board were therein mentioned instead of the Corporation (namely):—

Debenture stock to continue charge on transferred undertaking;

Redemption of debenture stock of company by Corporation;

Actions &c. not to abate and penalties to be recoverable;

Contracts to be binding on Corporation;

Books &c. to remain evidence; and

Partial repeal of company's Acts;

and as from the completion of such sale and purchase paragraph 16 of the scheduled agreement shall cease to have effect and any money which shall have been paid in consequence thereof shall be returned to the persons making such payments.

(5) If the board shall purchase the said undertaking the following provisions shall have effect:—

(A) If any of the following persons (namely) Harry Kendrick Joseph Hall David Thomas Livesey Ernest Nicholson Thomas Emmett and Robert Henry Moss who were respectively at the passing of this Act in the employment of the company shall at the date of the completion of the sale of the said undertaking to the board be in the employment of the Corporation pursuant to the scheduled agreement he shall be entitled—

(i) to decline to enter the service of the board; or

(ii) (having entered such service) to resign therefrom within twelve months from such entry; and

(iii) in either of those events (without prejudice to his rights under paragraph 17 of the scheduled agreement) to receive compensation under that paragraph as if he had been dismissed by the board within twelve months after the transfer of the said undertaking to the board:

(B) Paragraphs 15 and 17 of the scheduled agreement shall have effect as if the board had been named in the said paragraphs instead of the

Corporation and as if the Corporation had been named therein instead of the company and as if the expression "the transfer of the undertaking" were used in the said paragraphs meant the date of the completion of the sale of the said undertaking to the board. A.D. 1921.

(6) If the board shall purchase the said undertaking the Corporation may contract with the board for the supply to them of gas in bulk upon such terms and conditions as may be agreed upon between the Corporation and the board.

44. The following provisions for the protection of the county council of the administrative county of Chester (in this section referred to as "the county council") shall notwithstanding anything in this Act contained and unless otherwise agreed between the Corporation and the county council apply and have effect with respect to the exercise of any powers of the Corporation in or affecting any main road or any county or main road bridge or approach thereto in the limits of the Corporation for the supply of gas which is vested in the county council (that is to say):— For protection of Cheshire County Council.

(1) All new mains pipes and works (not being replacements of existing mains pipes and works or service pipes) to be laid in or along any such road or in or upon or across any such bridge or approach shall be laid in such position therein as the county council in writing under the hand of their surveyor may reasonably direct:

(2) The notice required by section 8 of the Gasworks Clauses Act 1847 with respect to the breaking up of streets shall as regards any such road bridge or approach be not less than seven days instead of three days except in cases of emergency as defined and provided for in such section:

(3) Nothing in this Act contained shall interfere with the right of the county council to alter the level of deviate or improve in any manner they think fit any main road or the approaches to any county or main road bridge in or along which any mains pipes or works of the Corporation shall have been laid and the Corporation shall with all reasonable despatch on receiving

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notice in writing under the hand of the clerk or surveyor to the county council so to do alter the position of any such main pipes or works in the manner and to the extent reasonably prescribed by such notice or as in case of difference shall be determined in the manner hereinafter provided and the county council shall repay to the Corporation the expense reasonably incurred by the Corporation in effecting any such alteration of the position of any such mains pipes or works :

- (4) Nothing in this Act contained shall interfere with the right of the county council at any time to remove alter rebuild widen or repair any county or main road bridge or the roadway over the same over or near or attached to which any mains pipes or works of the Corporation are carried in the same manner as they might have removed altered rebuilt widened or repaired such bridge or the roadway over the same if this Act had not passed and such mains pipes or works had not been laid over or near or attached to such bridge and the county council shall not make any compensation to the Corporation for any expense or loss to which the Corporation may be put by reason or in consequence of any such removal alteration rebuilding widening or reparation and in the event of any such bridge or the roadway over the same over or near or attached to which any such mains pipes or works are laid being removed altered rebuilt widened or repaired as aforesaid the Corporation shall at their own cost in all things alter the position of any works by which such mains or pipes are carried over or near or attached to such bridge or the roadway over the same Provided that during the removal alteration rebuilding widening or reparation of such bridge or the roadway over the same as aforesaid the county council shall afford all reasonable facilities to enable the Corporation temporarily to carry such mains and pipes across any stream or brook so as not to interrupt the continuous conveyance and supply of gas or to diminish the pressure of such supply through such mains or pipes ;

(5) All works shall be so executed by the Corporation as not to stop or (so far as reasonably practicable) impede or interfere with the traffic on any such road or over any such bridge or approach and the Corporation shall not break up at any one time a greater consecutive length than one hundred yards of any such road bridge or approach :

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 —

(6) If any difference arises at any time between the county council and the Corporation touching this section or anything to be done or not to be done thereunder such difference shall be referred to two justices sitting as a court of summary jurisdiction who shall hear and determine the matter in dispute in all respects as if the same were a difference between the Corporation and the county council under section 9 of the Gasworks Clauses Act 1847.

45. The provisions of the section of this Act whereof the marginal note is " For protection of Cheshire County Council " shall so far as applicable extend and apply to and enure for the benefit and protection of the urban district councils of Stretford Urmston Sale and Ashton-upon-Mersey and the rural district councils of Barton-upon-Irwell and Bucklow in relation to the laying down maintenance alteration improvement extension renewal and use by the Corporation in any road street bridge or other highway for the time being maintainable by those councils respectively of any mains pipes or other works other than the gas mains and works authorised by the section of this Act whereof the marginal note is " Power to lay gas mains and execute works."

For protec-
 tion of
 certain
 district
 councils.

46. Notwithstanding anything in this Act contained the following provisions shall have effect for the protection of the Stretford Urban District Council the Urmston Urban District Council the Barton-upon-Irwell Rural District Council and the Bucklow Rural District Council (each of whom is in this section referred to as " the road authority ") unless otherwise agreed in writing between the road authority and the Corporation in regard to the laying down maintenance alteration improvement extension renewal and use of the gas mains authorised by the section of this Act of which the marginal note is " Power

For protec-
 tion of
 certain road
 authorities.

A.D. 1921. to lay gas mains and execute works" in this section referred to as "the gas mains" :—

- (1) The provisions of section 8 of the Gasworks Clauses Act 1847 in its application to the gas mains shall have effect as if the word "fourteen" were substituted for the word "three" in that section except in case of emergency as defined and provided for in such section :
- (2) The plan required by section 9 of the last-mentioned Act shall be on a scale of not less than $\frac{1}{2500}$ and shall be accompanied by sections and detailed drawings to scales of not less than one inch to four feet to show clearly the proposed works and shall be delivered to the road authority not less than twenty-one days before the Corporation commence to open or break up the road :
- (3) The gas mains shall be laid in or along any road or in or upon or alongside any bridge or approach in such position therein as the road authority in writing under the hand of their surveyor may reasonably direct :
- (4) The trench or trenches in which the gas mains are laid under any road vested in the road authority shall be filled in and the surface of the road shall be made good and kept level with the adjoining surface of the road in accordance with the reasonable requirements of the said surveyor and the Corporation shall be liable to maintain repair and make good at their own expense and to the reasonable satisfaction of the said surveyor the roadway over the trench for a period of twelve months from the date of the surface being made good as aforesaid :
- (5) If after the gas mains have been laid in such road any sinking or subsidence of the surface of the road due thereto shall occur the Corporation shall at their own expense make up the surface of the road to the reasonable satisfaction of the said surveyor and if they fail to do so in seven days when required by the said surveyor he may on giving the Corporation twenty-four hours' notice cause the work to be done and

all expenses reasonably incurred in connexion with such work shall be repaid by the Corporation to the road authority : A.D. 1921.

- (6) The laying down of the gas mains and any works of maintenance alteration or renewal thereof shall be executed so as not to stop or unreasonably impede or interfere with the traffic over or along any road and the Corporation shall not break up at any one time a greater consecutive length than one hundred yards of any road and shall leave an interval of at least one hundred yards between any two places at which they may break up such road :
- (7) If by reason or in consequence of the laying down maintenance alteration improvement extension renewal or use of the gas mains any increased expense is reasonably incurred by the road authority in connexion with the maintenance or repair of any such road the expense so incurred shall be repaid by the Corporation to the road authority :
- (8) The Corporation shall be responsible for and make good to the road authority all losses damages costs and expenses which may be occasioned to them or to any of their roads sewers drains or property by reason of the execution or failure of the gas mains within the district of the road authority or by any act or omission of the Corporation or of their contractors agents or servants and the Corporation shall indemnify the road authority from all claims and demands upon or against them by reason of such execution or failure or of such act or omission :
- (9) If any difference arises at any time between the road authority and the Corporation touching this section or anything to be done or not to be done thereunder such difference shall be referred to two justices sitting as a court of summary jurisdiction who shall hear and determine the matter in dispute in all respects as if the same were a difference between the Corporation and the road authority under section 9 of the Gasworks Clauses Act 1847..

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For protec-
tion of
Bucklow
Rural
District
Council.

47. The following provisions shall unless otherwise agreed in writing between the Bucklow Rural District Council (in this section referred to as "the council") and the Corporation apply and have effect (that is to say) :—

- (1) When the Corporation commence the construction of the gasworks authorised by the section of this Act the marginal note whereof is "Power to make and maintain gasworks" they shall at the same time—

(A) Widen Manchester Road on its easterly side to a minimum width of forty-two feet for the entire length of the lands which are described and numbered (1) and (2) in the Second Schedule to this Act and which the Corporation are authorised by this Act to enter on and take and shall make up the widened road with a cindered footpath seven feet six inches in width on the widened side of the road and curb and channel the same; and

(B) Acquire and add to the said road sufficient land to enable the council to widen the said road to the said minimum width of forty-two feet from the northern corner of the said lands numbered (1) in the Second Schedule to this Act in a northerly direction for a distance of one thousand and forty-two feet or thereabouts and set back the fence.

The works (A) provided for by this subsection shall be carried out in accordance with plans sections and specifications to be previously submitted to and reasonably approved by the council and shall be completed to the reasonable satisfaction of the council. Provided that if such plans sections and specifications shall not be disapproved by the council within one month after they shall have been submitted to them they shall be deemed to have approved the same :

- (2) Any difference which may arise between the Corporation and the council under or in pursuance of this section shall be settled by arbitration.

48. The following provisions for the protection of the Cheshire Lines Committee (in this section called "the committee") shall unless otherwise agreed between the Corporation and the committee apply and have effect:—

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For protection of
Cheshire
Lines
Committee.

(1) Notwithstanding anything contained in this Act or shown upon the deposited plans or sections the Corporation shall not enter upon take use purchase or acquire any lands or property of the committee but the Corporation may purchase and take and the committee shall sell and grant accordingly an easement or right of using so much of the lands of the committee as may be necessary for the construction maintenance and use of the road authorised by this Act together with lines of rail thereon and for the making enlarging renewing maintaining repairing inspecting cleansing managing using working and obtaining access to such number of mains and other apparatus as the Corporation require for connecting their works on the lands described in paragraph (1) of the Second Schedule to this Act with the lands described in paragraph (2) of that schedule and such purchase and sale shall be in accordance with the provisions of the section of this Act whereof the marginal note is "Acquisition of easements" and that section shall apply accordingly:

(2) Before commencing any works on the lands secondly described in the Second Schedule to this Act the Corporation will give to the committee one month's notice in writing of their intention so to do and if before the expiration of twelve months from the receipt of such notice the committee express in writing their desire to purchase the two pieces of land coloured red on the plan signed by Alfred Percy Ross on behalf of the committee and by William Newbigging on behalf of the Corporation for the purpose of widening or improving the railway of the committee the Corporation will sell to the committee their estate and interest in such two pieces of land subject to any public rights thereover at a price which shall be reasonably proportionate to the price (including costs) to be paid by the Corporation for so much of the

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said lands secondly described in the Second Schedule to this Act as is situate in the township of Partington and as shall be acquired by the Corporation under the powers of this Act. Provided always that the Corporation shall not give such notice until they have definitely decided to commence the said works :

- (3) In order that the traffic of the Corporation to or from the said lands may be efficiently dealt with the Corporation shall construct the sidings shown in red colour on the said plan outside the boundary of the land of the committee and in order to connect the same with the railway of the committee the committee will at the request and cost of the Corporation construct the sidings coloured red on the said plan situate inside the boundary of the land of the committee and the gate shown on the said plan and will connect the said last-mentioned sidings with the sidings of the committee coloured blue on the said plan. Provided always that if the committee shall at any time desire to alter the position of the sidings constructed on the land of the committee and to form a new connexion with the sidings of the Corporation for the purposes only of the traffic of the Corporation they shall be at liberty to do so and the reasonable cost of such alteration and new connexion shall be paid by the Corporation to the committee :
- (4) The committee will maintain but at the reasonable cost of the Corporation the sidings coloured red inside the said boundary and the said gate and the Corporation will maintain at the like cost and to the reasonable satisfaction of the chief engineer of the committee the sidings coloured red outside the said boundary and any other works outside the said boundary over which the Corporation may require the engines of the committee to run :
- (5) If it shall be reasonably necessary for the committee to purchase or pay compensation for any minerals required to be left unworked for the protection and safety of any works constructed by the Corporation under the powers

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of this Part of this Act and if such purchase or the payment of such compensation would not have been necessary in the absence of such works the Corporation shall pay to the committee all costs and expenses reasonably incurred by them in relation to any such purchase or payment of compensation :

- (6) All works of the Corporation in any way affecting the railways works or property of the committee shall be executed under the superintendence (if given) and to the reasonable satisfaction of the chief engineer of the committee according to complete drawings and specifications previously submitted to and reasonably approved by him. Provided that if the same shall not be disapproved by him within one month after they shall have been submitted to him he shall be deemed to have approved the same :
- (7) If within one month after the receipt of such drawings and specifications the committee give to the Corporation notice that they desire themselves to execute any part of the works (other than the actual laying of the gas mains pipes and apparatus) which will affect the railways works or property of the committee the committee may themselves execute such part of the works and recover the reasonable cost thereof from the Corporation :
- (8) The Corporation shall on demand repay to the committee the reasonable expense of any watching or signalling which may be necessary for the protection of the railways and the traffic thereon by reason of and during the execution of any works affecting the railways of the committee :
- (9) If by reason of the execution maintenance subsidence or failure of any of the works of the Corporation under this Part of this Act or by reason of the leakage of any pipes of the Corporation thereunder any railway works or property of the committee shall be damaged or any interruption shall be caused to the traffic on such railway or at to or from any station thereon the Corporation shall make full compensation to the

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committee in respect of such damage injury or interruption the amount of such compensation unless agreed upon to be determined by arbitration and shall effectually indemnify and hold harmless the committee from all claims or demands upon or against them in respect thereof including claims for compensation payable to any workman or his legal representatives or dependents. Provided always that the Corporation shall not be liable in respect of any costs charges losses damages and expenses which may be occasioned through the negligence or incompetence of servants or workmen of the committee:

- (10) If by reason of the construction or alteration of the said works it shall become reasonably necessary to add to or alter any signal cabin signal posts electrical power lines telegraph poles or wires or other similar works upon the railway they shall be so added to or altered by the committee and the reasonable expenses of such additions and alterations and of the maintenance thereof shall be repaid to the committee by the Corporation:
- (11) If the committee at any time hereafter be desirous for the purpose of widening their existing railways or of forming branches or sidings to any existing or intended works or manufactories of constructing a bridge or bridges over or under the works by this Act authorised the Corporation shall afford to the committee all reasonable and proper facilities for the construction of such bridge or bridges. Provided nevertheless that the plans specifications and drawings of any such bridge or bridges shall be submitted to and reasonably approved in writing by the principal gas engineer for the time being of the Corporation. Provided also that if within one month after the receipt of such plans specifications and drawings the said engineer does not give to the committee notice of his objections thereto he shall be deemed to have approved thereof:
- (12) The Corporation shall at all times maintain their said works so far as they adjoin or affect the

railways or property of the committee in good repair and condition to the reasonable satisfaction of the chief engineer of the committee and if and whenever the Corporation fail so to do the committee may make and do in and upon as well the lands of the Corporation as their own lands all such works repairs and things as they may reasonably think necessary in that behalf and the expense thereof shall be repaid to the committee by the Corporation :

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(13) Any additional expense which the committee may reasonably incur in maintaining renewing altering or widening their existing railways and works by reason of the existence of the said works of the Corporation or any main pipes or apparatus of the Corporation (being part of such works) constructed or laid under or across the existing railways or works of the committee shall be paid by the Corporation. Provided that such additional expense shall not include the cost to the committee of the two pieces of land referred to in subsection (2) of this section :

(14) Any difference which may arise between the Corporation and the committee under subsections (2) to (13) both inclusive of this section shall be determined by arbitration.

49. For the protection of the Right Honourable Mary Annette de Trafford Frederick Bartholomew Stapleton Bretherton and Charles Edmund de Trafford the present trustees of the will of the late Sir Humphrey de Trafford Baronet and for the purposes of the de Trafford Estate Act 1904 (in this section called "the trustees" which expression shall include the trustees for the time being of the said will and Act and persons claiming under or in succession to them being the owners or owner for the time being entitled to the possession or to the rackrents of the estates settled by the said will or any part thereof in this section called "the estates") the following provisions notwithstanding anything in this Act contained or shown on the deposited plans and sections and unless otherwise agreed in writing under seal between the trustees and the Corporation shall apply and have effect (that is to say) :—

For protection of de Trafford Estate.

(1) For the purposes of the execution and maintenance of the works authorised by the section of

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this Act whereof the marginal note is "Power to lay gas mains and execute works" (in this section collectively referred to as "the said mains") the Corporation shall not take or appropriate any land of the trustees being part of the estates (except as respects any part of the strip of land hereinafter referred to which they may require to purchase and use for works and conveniences upon the surface of the ground) but the Corporation may acquire and the trustees shall sell under and in accordance with the provisions (as modified by this section) of the section of this Act the marginal note of which is "Acquisition of easements" the easement or right of laying and maintaining the said mains in through and under a strip of land being part of the estates not exceeding five yards in width within the limits of deviation shown on the deposited plans Provided that the Corporation shall not be entitled to purchase any greater portion of the said strip of land than fifty-four square yards in the whole nor to purchase at any one place any greater portion of the said strip than nine square yards and shall not erect or construct thereon any works or conveniences so as to project above the surface of the adjoining ground or to prevent or interfere with the exercise and enjoyment of any such rights as are referred to in subsection (9) of this section :

- (2) The Corporation shall not be entitled to impose any restriction upon the use of the said strip of land except so far as may be actually necessary for the enjoyment of the said easement or right nor shall they be required or entitled to fence off or sever the said strip of land from the adjoining lands of the trustees and the trustees shall not be entitled to erect any building on the surface of the land in respect of which the said easement or right shall have been granted or work the mines thereunder otherwise than subject to the provisions of the Public Health Act 1875 (Support of Sewers) Amendment Act 1883 which shall be deemed to be incorporated with this section :

(3) The said mains shall be constructed and main- A.D. 1921.
tained by the Corporation under the superinten-
dence if the same be given and to the reasonable
satisfaction of a surveyor to be appointed by
the trustees and (except in case of emergency)
according to plans sections and particulars to be
previously submitted to and reasonably approved
by him or in case of difference between him
and the Corporation to be settled by arbitration
Provided that in the event of such plans sections
and particulars not having been objected to by
such surveyor within one month after the same
shall have been submitted to him he shall be
deemed to have approved thereof In the
construction and maintenance of the said mains
the Corporation shall not interfere with the
drainage of any part of the estates without first
making provision to the reasonable satisfaction
of such surveyor for carrying such drainage
round under or over the said mains without
additional expense to the trustees and all works
constructed by the Corporation for the purpose
of carrying the existing drainage of any part
of the said estates shall at all times thereafter
be maintained and kept in repair to the like
satisfaction by and at the expense of the Cor-
poration :

(4) During the construction and repair of the said
mains or any of them the Corporation shall do
and occasion as little damage and inconvenience
as may be to the estates and the timber and
other trees underwood crops and vegetation
thereon and to the trustees or their tenants :

(5) The Corporation shall whenever the surface of
the said lands shall be broken during the con-
struction maintenance or repair of the said
mains carefully remove and store all vegetable
soil to such depth as shall be required for the
purpose of restoring the surface and upon the
completion of the said mains or of the mainten-
ance or repair thereof (as the case may be)
spread and use such vegetable soil for the purpose
aforesaid and shall to the reasonable satisfac-
tion of the trustees or their agent or surveyor

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carry away such portion of materials excavated in the laying or construction of the said mains as shall not have been used in the construction thereof or in the restoration of the surface and also shall restore all walls fences roads footpaths and other works in or under which any of the said mains are constructed or laid down :

- (6) The Corporation shall give to the trustees or their agent not less than forty-eight hours' notice of their intention to commence the construction or repair of any of the said mains on or under the estates except in case of emergency in which case such notice shall be given within twenty-four hours of entry and after the construction of the said mains no person shall enter upon the estates for the purpose of examining or inspecting the said mains on behalf of the Corporation except such inspectors as shall from time to time be appointed by the Corporation of which appointment the Corporation shall notify the trustees in writing :
- (7) The Corporation shall from time to time pay to the trustees on demand the reasonable cost of the employment by the trustees of a reasonable number of watchers for the prevention of poaching and trespass on the estates during the construction and repair of the said mains :
- (8) The Corporation shall maintain the said mains in proper and efficient repair working order and condition to the reasonable satisfaction of the said surveyor and shall pay to the trustees and their tenants full compensation for all loss damage and inconvenience which the trustees and their tenants may sustain by reason or in consequence of the exercise by the Corporation of the provisions of this Part of this Act or the execution or failure of the said mains and shall indemnify the trustees from all claims demands costs damages and expenses in respect thereof :
- (9) Nothing in this Act contained shall confer on the Corporation any right to support for the said mains from any mines of coal lying under the lands through which the same shall be laid or

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under any adjoining lands and the trustees and any person or persons authorised by them shall— A.D. 1921.

(A) have full powers of working and getting all such mines (subject to subsection (2) of this section) as if this Act had not been passed; and

(B) be entitled to construct and maintain and use in or across or under the said lands (including any portions thereof purchased by the Corporation as hereinbefore mentioned)—

(i) any roads tramways railways railway embankments sidings sewers drains pipes tunnels cables and wires; and

(ii) any buildings upon so much of such lands as is outside the strip of land five yards in width referred to in subsection (1) of this section;

without becoming liable for any injury thereby caused to the said mains or for any loss or damage suffered by the Corporation. Provided that if the trustees or any such person as aforesaid shall construct a railway embankment or railway embankments across the said lands the Corporation shall be entitled at their own expense to construct in through or under such embankment all such works (if any) for the protection of the said mains as shall not affect or interfere with the stability of the said embankment or the railway thereon or the use or enjoyment of any lands adjoining the same and as may be approved by the trustees or such person as aforesaid and no such protective works as aforesaid shall be executed otherwise than under the superintendence (if given) and to the satisfaction of the trustees or such person as aforesaid or their or his engineer. If by reason of the execution or failure of any such protective works any damage or injury shall be caused to the said embankment or railway the Corporation shall make full compensation in respect thereof to the trustees or such person as aforesaid and shall indemnify them or him from and against all claims demands costs damages and expenses arising out of such damage or injury. Provided also that no railway embankment or railway

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—

embankments as aforesaid shall be made or constructed so as to cross the said mains at an angle of less than twenty degrees :

- (10) All such works as are referred to in paragraph (B) of subsection (9) of this section and as are to be executed by the trustees shall so far as the same may affect the said mains be carried out to the reasonable satisfaction of the Corporation and in accordance with plans sections and particulars to be previously submitted to and reasonably approved by the Corporation or in case of difference between the trustees and the Corporation to be settled by arbitration Provided that in the event of such plans sections and particulars not having been objected to by the Corporation within one month after the same shall have been submitted to them they shall be deemed to have approved thereof :
- (11) The provisions of subsection (2) of section 6 of the Stretford Gas Order 1917 shall apply in relation to the exercise by the Corporation upon the land referred to in that subsection of the powers conferred upon them by the section of this Act of which the marginal note is " Power to make and maintain gasworks " :
- (12) Any difference which may arise between the trustees or the said surveyor and the Corporation other than any difference as to the compensation to be paid by the Corporation for or in respect of the acquisition of the lands or easements hereinbefore referred to shall be determined by arbitration by a single arbitrator.

For protec-
tion of
Manchester
Ship Canal
Company.

50. For the protection of the Manchester Ship Canal Company (in this section referred to as " the company ") the following provisions shall unless otherwise agreed in writing between the company and the Corporation have effect (that is to say) :—

- (1) Subject to the provisions of this section the Corporation shall not under the powers of this Act or for any of the purposes thereof purchase any property of the company :
- (2)—(A) If the Corporation acquire the lands first described in the Second Schedule to this Act

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or any part thereof abutting upon the railways of the company they shall forthwith thereafter grant to the company free of charge the easement or right in perpetuity of making maintaining repairing renewing and using such additional lines of rail (to be used at the discretion of the company either as sidings or as running lines) as the company may from time to time think fit upon so much as shall be the property of the Corporation of a strip of land on the northern side of the said railways of the company which with the intervening land of the company will extend for a uniform width of ninety feet measured from the northernmost rail of the said railways and extending from Manchester Road to Sinderland Road such strip of land being coloured blue on the plan (in this section referred to as "the signed plan") signed in quadruplicate by Sir William Middlebrook the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred (of which plan one copy has been deposited in the Parliament Office of the House of Lords one copy in the Private Bill Office of the House of Commons and other copies have been deposited with the town clerk and the company respectively) and the Corporation shall not use or permit to be used for any purpose which would prevent or interfere with the enjoyment and exercise by the company of the said easement or right any part of the said strip of land which is or shall become the property of the Corporation :

(B) The company shall free of charge add to Manchester Road the three strips of land coloured purple and marked J K and L on the signed plan The fence at the strip marked J shall be set back by and at the expense of the Corporation to the reasonable satisfaction of the company but the Corporation shall not be under any obligation in regard to the subsequent maintenance thereof :

(c) The company shall free of charge convey to and vest in the Corporation in fee simple the two strips of land coloured red and marked M and N

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on the signed plan in order that they may form slopes to Manchester Road as intended to be widened by the Corporation where such road approaches the bridge carrying the same over the railways of the company :

- (D) The company shall free of charge grant to and vest in the Corporation the perpetual easement or right of using the strip of land coloured green and marked O on the signed plan in order that the same may form part of the slope to Manchester Road as intended to be widened by the Corporation where such road approaches the bridge carrying the same over the railways of the company :
- (3) The company shall erect maintain renew and repair a fence along the northern side of the strip of land referred to in subsection (2) (A) of this section and remove the fence forming the northern boundary of the railways of the company as existing immediately before the passing of this Act :
- (4)—(A) Contemporaneously with the erection of the works referred to in the last preceding subsection the Corporation shall at their own expense divert so much of the public footpath shown on the deposited plans adjoining and on the northerly side of the existing railways of the company and also shown and coloured brown on the signed plan as extends between Manchester Road and the site of a new footpath to be constructed by the Corporation between the footbridge hereinafter referred to and Common Lane shown by dotted red lines on the signed plan such diversion to be constructed immediately along the northerly side of the fence referred to in the last preceding subsection from Manchester Road to the said new footpath :
- (B) As from the date of the completion and opening of the diversion of footpath required by this subsection all rights of way and other rights over the existing footpath which is to be so diverted shall be and are hereby extinguished :
- (5) The Corporation may acquire and the company shall if so required by the Corporation grant to them free of charge the easement or right in

perpetuity of running locomotives and wagons across the said railways of the company and across any lines of rail laid down by the company upon the strip of land referred to in subsection (2) (A) of this section (in this section referred to as "the company's additional lines") by means of rails (in this section referred to as "the Corporation railway") to be laid down as hereinafter provided in the position shown on the deposited plans as the site of a road but which is only to be used as a private rail and pipe track :

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- (6) The Corporation shall at their own expense execute all works of excavation in connexion with the Corporation railway and the company shall lay down and at all times thereafter maintain and repair the sleepers and rails of the Corporation railway so far as the same will be situate between the boundaries of the property of the company as existing immediately before the passing of this Act or upon the strip of land referred to in subsection (2) (A) of this section :
- (7) The Corporation railway shall be constructed on the level where the same crosses over the existing railways of the company and over the strip of land referred to in subsection (2) (A) of this section or the company's additional lines and shall in the first instance consist of a single line of rails. Provided that the Company shall if and when so required in writing by the Corporation lay down as part of the Corporation railway and at all times thereafter maintain and repair the sleepers and rails for a second line of rails across the railways of the company and the strip of land referred to in subsection (2) (A) of this section or the company's additional lines :
- (8) The Corporation shall on demand repay to the company the cost incurred by them in or in connexion with the laying down of sleepers and rails under subsections (6) and (7) of this section or either of those subsections and shall also from time to time on demand repay to the company the cost of the maintenance or repair of the said sleepers and rails :

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- (9) The Corporation railway shall be constructed on a gradient not steeper than one in seventy-five for a distance of not less than two hundred and fifty yards northward of the strip of land referred to in subsection (2) (A) of this section and for a like distance southward of the railways of the company :
- (10) If at any time after the construction of the Corporation railway the company shall require to lay down the company's additional lines or any of them the Corporation shall pay to the company the amount of the additional cost incurred by them in laying down such lines by reason of the existence of the Corporation railway :
- (11) The following provisions shall apply with reference to the user of the Corporation railway :—
- (A) The Corporation shall not run locomotives or wagons over the Corporation railway more frequently than twice in any day ;
- (B) The traffic on the Corporation railway shall be worked in accordance with the bye-laws rules and regulations of the company from time to time in force with respect to the working of traffic on their railways and so as not to interfere in any way with the working of the traffic on the railways of the company and the Corporation and their officers and servants in working the traffic on the Corporation railway shall comply with the directions and requirements of the company or their officers or servants ;
- (C) The Corporation railway shall be used maintained and worked in such a manner as to give absolute preference and priority to all traffic on the railways of the company over all traffic on the Corporation railway ;
- (D) The Corporation shall give reasonable notice of their intention on each occasion to run any locomotive or wagon over the Corporation railway ;
- (E) Whenever so requested by the Corporation for enabling them to run any locomotive or wagon or train of wagons over the Corpora-

tion railway in accordance with the provisions of this section the company shall open any train of wagons standing on their railways or on the company's additional lines and the Corporation shall repay to the company the cost incurred by them in so doing : A.D 1921.

(12) The Corporation shall repay to the company on demand the cost incurred by the company in erecting providing maintaining and working any signals or signalling apparatus which the company may deem necessary or expedient for ensuring the safe and convenient working of the traffic on their railways (including the company's additional lines) and for preventing any injury to or interference with such traffic by or by reason of the construction or use of the Corporation railway or in the employment (if the company deem such employment sufficient in lieu of the provision of signals or signalling apparatus) of flagmen for the like purpose :

(13) The Corporation shall at their own expense erect and maintain fences and gates across the Corporation railway—

(A) at the southern boundary of the property of the company; and

(B) at the northern boundary of the strip of land referred to in subsection (2) (A) of this section ;

such fences and gates being in each case at the point of crossing by the Corporation railway. The said gates shall only be opened for the purpose of and during the passage of locomotives or wagons on the Corporation railway over the said crossing and shall at all other times be kept locked :

(14)—(A) The Corporation shall at their own expense and to the reasonable satisfaction of the company erect and at all times thereafter maintain a footbridge of a clear width of six feet over the existing railways of the company at the site of the existing level crossing over those railways westward of the site of the Corporation railway for the free use at all times of all persons requiring to pass over the said railways :

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- (B) The said footbridge shall have a clear headway of not less than fifteen feet measured from the rail level of the said existing railways and shall be constructed in a single span of sufficient width to clear the said existing railways to the extent of five feet on each side of the outer rails thereof :
- (C) In the event of the company constructing the company's additional lines the company shall at their own expense extend the said footbridge over the site of the company's additional lines and at all times thereafter maintain such extension for the free use at all times of all persons requiring to pass over the said additional lines :
- (D) As from the date of the completion and opening of the footbridge referred to in paragraph (A) of this subsection and of the connecting footpaths on either side thereof the level crossing over the existing railways of the company shall be abolished and all rights of crossing by means thereof over the said railways shall be and are hereby extinguished :
- (E) As from the date of the completion and opening of any such extension of the said footbridge as is referred to in paragraph (C) of this subsection the company may stop up so much of the public footpath in continuation of the said level crossing as traverses the site of the company's additional lines and upon such stopping up all rights of way and other rights over the said portion of footpath shall be and are hereby extinguished :
- (15) The company shall if so required by the Corporation grant to them free of charge the easement or right in perpetuity of making enlarging renewing maintaining repairing inspecting cleansing managing using working and obtaining access to such pipes (not exceeding six in number and each having an external diameter not exceeding thirty-six inches) under the railways of the company and close alongside the Corporation railway as the Corporation may require Provided that no such pipe shall be so laid in any position other than such as may

be approved by the company such approval A.D. 1921
not to be unreasonably withheld:

- (16) The company shall if so required by the Corporation grant to them the easement or right in perpetuity of making enlarging renewing maintaining repairing inspecting cleansing managing using working and obtaining access to—

(A) the gas main or gas mains referred to in the section of this Act of which the marginal note is "Power to lay gas mains and execute works" in through or under the property of the company; and

(B) the bridge for carrying the said main or mains over the Bridgewater Canal of the company also referred to in the said section:

The consideration to be paid by the Corporation to the company for the grant of the easement or right referred to in this subsection shall be such as may be agreed upon between them or as failing such agreement shall be determined in accordance with the provisions of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement:

- (17) The said bridge over the Bridgewater Canal shall be constructed—

(A) with a span of not less than sixty-six feet measured on the square;

(B) with a clear headway throughout of not less than twelve feet measured from the water level of the said canal which for the purposes of this section shall be deemed to be eighty-three feet above Ordnance datum; and

(C) so that the abutment thereof on the eastern side of the said canal shall not encroach upon the waterway thereof and that the abutment thereof on the western side of the said canal shall be at a distance of ten feet from the nearest part of the waterway so as not to encroach upon the towing-path of the said canal:

- (18) The Corporation when constructing the said bridge over the said canal shall at their own expense if requested so to do by the company

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reconstruct the water wall on each side of the said canal for a length of twenty feet in the position and of dimensions and materials to be prescribed by the company and any intervening soil or materials between the new wall and the said canal shall be excavated by the Corporation to a depth of six feet below the water level of the said canal :

- (19) In constructing repairing or maintaining the said bridge the Corporation shall not except with the written consent of the company (and then only upon and subject to such terms and conditions as they may reasonably prescribe) obstruct impede or interfere with the free uninterrupted and safe use of the said canal or the towing-path thereof or the property of the company adjacent thereto or the traffic thereon or thereover and if any obstruction impediment or interference shall except as aforesaid be caused or take place without the written consent of the company or if there shall be any breach or failure to comply with any material term or condition prescribed by the company as aforesaid the Corporation shall make good to the company all loss or damage costs or expenses which they may sustain or reasonably incur by such obstruction interference breach or failure in addition to and without prejudice to any remedy the company may have by injunction or otherwise :
- (20) The Corporation shall during the construction of the said bridge across the said canal and the towing-path thereof and during the carrying out of any works of maintenance or repair thereof exhibit every night from sunset to sunrise a light or lights which shall be kept burning by and at the expense of the Corporation and such light or lights shall be of such description and be so used and placed as the company may reasonably require :
- (21) All works to be constructed by the Corporation upon over or affecting the railways works or property of the company (hereinafter referred to as "the Corporation's works") shall be

completed with all reasonable dispatch after the commencement thereof and shall at all times after such completion be maintained in proper repair to the reasonable satisfaction of the company :

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(22) During the construction repair or maintenance of the Corporation's works or any of them the company may make such provision as they deem necessary for obviating or minimising any injury to their railways or to the said canal or any interruption of or interference with the working of the traffic thereon or thereover by such construction repair or maintenance and may recover from the Corporation the costs charges and expenses reasonably incurred by the company in so doing :

(23) The Corporation shall bear and on demand pay to the company all reasonable expenses of the employment by the company of a sufficient number of inspectors watchmen and flagmen for watching and regulating the traffic upon their railways and upon the said canal and towing-path with reference to and during the construction repair or maintenance of the Corporation's works :

(24) The Corporation shall make good all damage that may be occasioned to the works or property of the company by the construction renewal or want of repair or maintenance of any of the Corporation's works or otherwise resulting from the exercise by the Corporation of the powers of this Act But—

(A) in every case of pressing necessity ; and

(B) in every other case if for twenty-one days after notice in writing thereof given to the Corporation by the company the Corporation neglect to proceed with due diligence to make good such damage

the company may if they think fit make good the damage and the amount reasonably expended by them in so doing shall be repaid to them by the Corporation on demand :

(25) The Corporation shall be responsible for and make good to the company all losses damages

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and injury of every description and howsoever occurring to persons or property which may be sustained by the company and all costs charges and expenses which may be properly incurred by the company by or in consequence of the construction maintenance user or failure of the Corporation's works or by or in consequence of any act or omission of the Corporation or any person in their employment or their contractors or agents and the Corporation shall effectually indemnify and hold harmless the company from all such losses costs charges expenses damages or injury as aforesaid and from all claims and proceedings in respect thereof :

(26) The Corporation's works shall be executed in strict accordance with plans sections and particulars to be previously submitted by the Corporation to and approved in writing by the company (which approval shall not be unreasonably withheld) and under the supervision of the company (if given) at the expense of the Corporation and to the reasonable satisfaction of the company. Provided that if for one month after any plans sections or particulars shall have been submitted by the Corporation to the company the company shall not have expressed their approval or disapproval thereof they shall be deemed to have approved thereof :

(27) If any difference shall arise between the company and the Corporation under the provisions of this section (for which no other mode of determination is provided by this section) such difference shall be referred to and determined by arbitration.

Transfer of
property
and rights
of Salford
Corporation
in Davy-
hulme.

51. Whereas the township of Davyhulme (in this section referred to as "the said township") forms part of the statutory limits for the supply of gas of the mayor aldermen and burgesses of the county borough of Salford (in this section referred to as "the Salford Corporation") and of the company and the Salford Corporation and the company have concurrent rights of supplying gas in the said township Therefore the following provisions

(which have been agreed to by the Salford Corporation) A.D. 1921.
shall have effect (that is to say) :—

- (1) On and as from the twenty-fifth day of March nineteen hundred and twenty-two there shall be by virtue of this Act transferred to and vested in the Corporation all gas mains pipes services meters stoves fires and other apparatus fittings and appliances of the Salford Corporation in the said township and all rights and obligations of the Salford Corporation with respect to the supply of gas in the said township :
- (2) The Salford Corporation shall be entitled to the sums payable by consumers in the said township for gas supplied to them up to the twenty-fifth day of March nineteen hundred and twenty-two and may and shall demand and recover from such consumers all sums payable by them in respect of gas so supplied to them prior to that date :
- (3) On and as from the twenty-fifth day of March nineteen hundred and twenty-two the Corporation shall supply gas to such consumers in the said township and may and shall demand and recover from such consumers all sums payable by them in respect of gas supplied on and after that day :
- (4) As from the twenty-fifth day of March nineteen hundred and twenty-two the said township shall for all purposes cease to be within the limits for the supply of gas of the Salford Corporation :
- (5) The Corporation shall on the twenty-fifth day of March nineteen hundred and twenty-two pay to the Salford Corporation the sum of seven thousand pounds as consideration for the transfer and vesting effected by this section and in full satisfaction and discharge of all claims and demands of the Salford Corporation in respect thereof. An acknowledgment by the Salford Corporation under the hand of the treasurer of the Salford Corporation of the receipt of the said sum of seven thousand pounds shall be a sufficient discharge to the Corporation for the payment thereof :

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- (6) The property rights and obligations of the Salford Corporation by this section transferred to and vested in the Corporation shall for the purposes of the section of this Act of which the marginal note is "Purchase by district councils of company's undertaking" be deemed to form part of the undertaking of the company and the said sum of seven thousand pounds shall be deemed to be a debt or obligation within the meaning of paragraph (c) of subsection (2) of that section.

PART IV.

MATERNITY HOMES.

Registra-
tion of
maternity
homes.

52.—(1) On and after the first day of January nineteen hundred and twenty-two (which date is in this Part of this Act referred to as "the prescribed date") it shall not be lawful for any person to carry on a maternity home unless the name of such person and the premises used or represented as being or intended to be used for the purpose of such home are registered with the Corporation.

(2) Any person requiring registration in respect of any such home shall make application in writing to the Corporation and shall in such application state—

- (A) his full name;
- (B) his age nationality and technical qualifications (if any);
- (C) his private address or in the case of an application by or on behalf of a company society association or body the registered or principal office (if any) of such company society association or body and so far as may reasonably be required the names and private addresses of the persons directly or indirectly responsible for the management of such company society association or body;
- (D) the name under which and the address at which such home is carried on or proposed to be carried on; and
- (E) such further information (if any) as the Corporation may reasonably require with respect to

the person or premises to be registered or the number of patients to be accommodated at any one time and the equipment in such premises; A.D. 1921.

and when making such application shall pay to the Corporation such fee as they may fix not exceeding five shillings.

(3) Every person carrying on any such home at the date of the passing of this Act and requiring registration in respect thereof shall make application for such registration within one month after the date or (if more than one) the latest date of publication of the advertisements with regard to this Part of this Act referred to in the section of this Act whereof the marginal note is "Notice of provisions to be given."

(4) Subject as in this section provided the Corporation shall as soon as reasonably practicable after the receipt of an application under the provisions of this section (and not later in the case of an application under subsection (3) of this section than the prescribed date) register the name of the applicant and the premises specified in his application.

(5) The Corporation by order to be served on the person carrying on or proposing to carry on any such home may refuse to register the name of such person or the premises used or represented as being or intended to be used for the purposes of such home or may cancel the registration of such person or premises on the ground that—

- (A) such person is under the age of twenty-one years; or
- (B) such person is unsuitable to carry on such home; or
- (C) the premises or their equipment are unsuitable for the purposes of a maternity home; or
- (D) the premises are used or intended to be used for the accommodation at any one time of an excessive number of patients; or
- (E) the premises or any other premises used for any purpose in connexion with such first-mentioned premises or with any business or occupation carried on therein are being used for any immoral purpose.

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(6) Before making any such order the Corporation shall give to the person proposed to be served therewith not less than seven days' previous notice in writing stating their intention to make the order and the grounds on which the order is proposed to be made and on written application made to them by such person within seven days after the giving of such notice they shall afford to such person an opportunity of being heard against the order.

(7) Any such order cancelling any registration shall take effect at the time specified in the order not being less than fourteen days after the service thereof but in the event of an appeal against any such order the order shall not come into operation unless and until it has been confirmed on appeal or the appeal has been abandoned.

(8) Any person aggrieved by any such order may appeal to a court of summary jurisdiction provided that such appeal is made within fourteen days after the order has been served upon him.

The court after considering any representations made on behalf of the Corporation may if it thinks fit confirm such order or direct the Corporation to withdraw such order and as soon as reasonably practicable the Corporation shall give effect to such direction.

Byelaws as
to homes.

53.—(1) The Corporation may make byelaws prescribing the records to be kept with respect to the patients received and the business carried on at a maternity home and requiring the notification to the Corporation of any death occurring thereat.

(2) The provisions of the following sections of the Public Health Act 1875 (namely) :—

Section 182 (Authentication and alteration of byelaws);

Section 183 (Power to impose penalties on breach of byelaws);

Section 184 (Confirmation of byelaws); and

Section 185 (Byelaws to be printed &c.);

so far as they relate to byelaws made by an urban sanitary authority shall apply to all byelaws made by the Corporation under the powers of this section.

(3) Every person carrying on a maternity home shall keep exhibited in a suitable place (to be approved

by the Corporation) in such home a copy of the byelaws in force under this Part of this Act. A.D. 1921.

54. Any officer duly authorised by the Corporation in that behalf may subject to such regulations (if any) as may be made by the Corporation at all reasonable times enter and inspect any premises which are used or which such officer has reasonable cause to believe are used for the purposes of a maternity home and the entries in any records required to be kept in connexion therewith. Powers as to entry and inspection.

55. Subject to the provisions of this Part of this Act— Penalties for offences in respect of maternity homes.

- (1) Every person who carries on a maternity home in contravention of the provisions of this Part of this Act shall be liable to a penalty not exceeding fifty pounds and to a further penalty not exceeding twenty pounds for each day on which the offence continues after conviction thereof and in respect of a second or subsequent offence the court may in lieu of or in addition to inflicting a fine impose any period of imprisonment not exceeding three months :

- (2) Every person who—

(A) refuses to permit any officer of the Corporation to enter or inspect any premises which such officer is authorised under the provisions of this Part of this Act to enter and inspect or the records to be kept pursuant to any byelaw made under the said provisions or obstructs any such officer in the execution of his duty under such provisions or under the provisions of any such byelaw as aforesaid ; or

(B) carries on a maternity home in contravention of the provisions of any such byelaw ; or

(C) issues publishes or displays or causes to be issued published or displayed any advertisement relating to a maternity home which is not registered in accordance with the provisions of this Part of this Act after the expiration of a period of seven days from the receipt of notice in writing from the Corporation or the publication of notice in the London Gazette that the registration of such home

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has been refused or cancelled under the provisions of this Part of this Act;

shall be liable to a penalty not exceeding five pounds and to a further penalty not exceeding two pounds for each day on which the offence continues after conviction thereof:

- (3) The court may in addition to imposing a penalty under this section order the cancellation of the registration:

Provided that a person who has appealed to a court of summary jurisdiction in accordance with the provisions of this Part of this Act against an order made by the Corporation thereunder cancelling registration shall not until such order has been confirmed on appeal or has been abandoned be liable to any proceedings under this section for the offence of carrying on a maternity home in contravention of the provisions of this Part of this Act or of any byelaw made thereunder.

Directors of companies to be personally liable for penalties.

56. Where any company registered under the Companies Acts 1862 to 1907 or under the Companies Acts 1908 to 1917 or any Act amending the same commits any offence for which a penalty is provided by this Part of this Act proceedings may be taken in respect of such offence against all or any of the directors and managers of such company as well as or instead of against the company and each such director or manager shall be liable on conviction to the like penalty as if he were the person committing the offence unless he proves to the satisfaction of the court—

- (1) that the act which constituted the offence took place without his knowledge consent or connivance; and
(2) that he was not guilty of any negligence in regard to securing the proper execution of this Part of this Act.

Saving for homes carried on by medical practitioners.

57.—(1) Subject as hereinafter provided the provisions of this Part of this Act shall not apply in the case of a maternity home carried on by a duly registered medical practitioner with respect to which there has been lodged with the Corporation a certificate in a form to be approved by them and signed by two duly registered medical practitioners practising or residing in the city not being in partnership with such first-mentioned medical

practitioner or with each other and not having any financial or other interest in such home to the effect that the premises used or represented as being or intended to be used for such home and the equipment provided at such premises are in all respects suitable for the purpose and that the medical practitioner carrying on or proposing to carry on such home is a suitable person to carry on the same. A.D. 1921.
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(2) Provided that any such certificate shall not be valid—

- (A) with respect to any person or premises other than the person or premises specified therein; or
- (B) for a period extending beyond the thirty-first day of January next following the date of the certificate.

58.—(1) Notwithstanding anything contained in this Part of this Act the foregoing provisions thereof shall not apply in the case of— Saving for certain premises.

- (A) any hospital infirmary institution or other establishment maintained or controlled by any Government department or local authority or any other authority or body constituted by Parliament or incorporated by Royal Charter; or
- (B) any hospital for the time being recognised by any committee or body administering either of the publicly subscribed funds known respectively as the Hospital Sunday Fund and the Hospital Saturday Fund as a hospital to which grants from either of such funds may be made; or
- (C) any institution or home for the training of persons desirous of becoming midwives which is for the time being approved by the Central Midwives Board constituted under the Midwives Acts 1902 and 1918; or
- (D) any maternity home in which only relatives of the person carrying on such home are received for the purposes of childbirth.

(2) For the purposes of this section the expression “relatives” means sisters daughters granddaughters nieces aunts or mothers by consanguinity or affinity and in the case of persons of illegitimate birth persons who would be so related if legitimate.

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—
Notice of
provisions
of this Part
of Act to be
given.

59.—(1) The Corporation shall give public notice of the effect of the provisions of this Part of this Act by advertisement in two or more daily newspapers circulating in the city and otherwise in such manner as they think sufficient.

(2) Copies of the newspapers containing the advertisements shall be sufficient evidence that the provisions of this section have been complied with.

PART V.

MISCELLANEOUS.

Removal of
person
suffering
from pul-
monary
tubercu-
losis to
hospital.

60.—(1) If the medical officer certifies in writing that any person within the city is suffering from pulmonary tuberculosis and is in a highly infectious state and that the lodging or accommodation with which such person is provided is such that proper precautions to prevent the spread of the infection cannot be taken or that such precautions are not being taken and serious risk is thereby caused to other persons and that thorough inquiry and consideration have shown the necessity in the public interest for the compulsory isolation of the person the medical officer may make application to a court of summary jurisdiction and such court upon oral proof of the allegations in such certificate and subject to examination by a registered medical practitioner to be nominated by them (if they think fit) may make an order for the removal of such person to a suitable hospital or place for the reception of the sick provided within the city or within a convenient distance of the city and for the detention and maintenance of such person therein for such period not exceeding three months as may be determined by such order or such further period not exceeding three months as may be determined by any further order made under and in accordance with the provisions of this section.

(2) The medical officer shall give the person so suffering or some person being in charge of the person so suffering three clear days' notice of his intention to make such application and of the time and place when and where such application will be made.

(3) The Corporation may in their discretion during the period of detention make payments for or towards the effective support and maintenance of the relatives of or those actually dependent upon any person so suffering

occasioned by the removal of any such person to a suitable hospital or place as aforesaid whether voluntarily or in pursuance of any order made by the court as aforesaid and on the hearing of any application under this section the court shall take into consideration the amount necessary for such effective support and maintenance and shall not make an order unless they are satisfied that the Corporation will make a sufficient payment in any case in which it appears that a contribution is necessary for the support and maintenance of such relatives or dependents.

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(4) An order under this section may be addressed to such constable or officer of the Corporation as the court making the same may think expedient and any person who wilfully disobeys or obstructs the execution of such order shall be liable to a penalty not exceeding ten pounds.

(5) At any time after but not before the expiration of six clear weeks from the making of the order an application may be made to the court by or on behalf of the person in respect of whom the order was made for the rescission of the order and such court may make a rescission order accordingly if having regard to the circumstances of the case they are of opinion that it is right and proper that such rescission order should be made. Such person or other the person making the application shall give to the medical officer not less than three clear days' notice of his intention to make the application and of the time and place when and where the application will be made.

(6) The provisions of this section shall cease to be in force within the city at the expiration of five years from the date of the passing of this Act unless they shall have been continued by Act of Parliament or by an order of the Minister of Health which order the Minister of Health is hereby empowered to make.

61.—(1) The rate of interest on any expenses recoverable by the Corporation under section 257 (Recovery of expenses by local authority from owners) of the Public Health Act 1875 or under any local Act or incurred by the Corporation under section 28 (Repair of houses) of the Housing Town Planning &c. Act 1919 shall be six per centum per annum or such other rate as the Minister of Health may from time to time by order direct.

Rate of
interest on
certain
expenses.

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(2) The provisions of this section shall not operate so as to increase the rate of interest payable to the Corporation in pursuance of any contract entered into before the passing of this Act.

Power to
Corporation
to redeem
ground
rents.

62.—(1) The Corporation may upon giving six months' notice in writing to any person for the time being entitled to any rentcharge ground rent chief rent or quit rent (hereinafter referred to generally as "ground rent") payable by the Corporation in respect of any land acquired by them under any public or local Act or in case of agreement without giving such notice redeem such ground rent on payment of such a sum in cash as may be agreed on between the Corporation and the person so entitled or as in case of difference shall be determined by an arbitrator and the provisions of the Lands Clauses Acts with reference to the settlement of disputed claims for compensation shall apply to every difference arising under this section and upon payment to the person so entitled of the amount so agreed or determined the land in respect of which such payment shall have been made shall vest in the Corporation absolutely freed and discharged from any future payment in respect of the ground rent so redeemed :

Provided that the costs of every such arbitration shall be paid by the Corporation.

(2) Within three months after any redemption of ground rent under the provisions of this section the Corporation shall produce to the Commissioners of Inland Revenue either a King's Printers' copy of this Act or a receipt for the sum paid for redemption duly stamped with the duty which would have been payable upon an instrument (as defined by the Stamp Act 1891) whereby the ground rent was released in consideration of the sum paid by the Corporation and in default of such production the duty with interest thereon at the rate of five per centum per annum shall become a debt from the Corporation to His Majesty.

(3) The interest on any money borrowed by the Corporation for the redemption of any ground rent under this section and the sums required for the redemption of such money shall be paid out of the fund or rate out of which the ground rent would have been payable if not redeemed.

63.—(1) The Minister of Health may direct any inquiries to be held by his inspectors which he may deem necessary in regard to the exercise of any powers conferred upon him or the giving of any consents under this Act and his inspectors shall for the purposes of any such inquiries have all such powers as they have for the purposes of inquiries directed by the Minister under the Public Health Act 1875.

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Inquiries by
Minister of
Health.

(2) The Corporation shall pay to the Minister any expenses incurred by him in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by the Minister for the services of such inspector.

64. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures fines costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recoverable as penalties but may be recovered summarily as civil debts.

Recovery of
penalties &c.

65. Save as herein expressly provided all informations and complaints under or for the breach of any of the provisions of this Act may be laid and made by any officer of the Corporation duly authorised in that behalf or by the town clerk or by any police officer acting for or within the city.

Informa-
tions by
whom to
be laid.

66.—(1) All powers rights and remedies given to the Corporation by this Act shall (except where otherwise expressly provided) be deemed to be in addition to and not in derogation of any other powers rights or remedies conferred on them or on any committee appointed by them by Act of Parliament charter law or custom and the Corporation or such committee as the case may be may exercise such other powers and be entitled to such other rights and remedies as if this Act had not been passed.

Powers of
Act cumu-
lative.

(2) Provided that no person shall incur more than one penalty (other than a daily penalty for a continuing offence) for the commission of the same offence.

67. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown.

Crown
rights.

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PART VI.

FINANCE.

Power to
borrow.

68.—(1) The Corporation may (in addition to the other sums which they are authorised to raise) borrow or raise at interest on the security of the city rate for and in connexion with the purposes mentioned in the first column of the following table any sums of money not exceeding in the whole the respective sums mentioned in the second column thereof and shall repay all moneys so borrowed within the respective periods mentioned in the third column thereof and those periods shall be the prescribed periods for the purposes of section 45 (As to repayment of borrowed moneys) of the Manchester Corporation Act 1891 (namely):—

1.	2.	3.
Purpose.	Amounts.	Period for Repayment.
(A) For the purchase of the land and easements which the Corporation are authorised to acquire for the purposes of Part III. (Gas) of this Act.	The sum requisite.	Sixty years from the date or dates of borrowing.
(B) For the construction of works which the Corporation are authorised to construct by the sections of this Act whereof the marginal notes are respectively "Power to make and maintain gasworks" and "Power to lay gas mains and execute works."	£1,640,000	Forty years from the date or dates of borrowing.
(C) For the purchase of the undertaking of the Stretford Gas Company under the scheduled agreement the payment of any sums payable to the company their officers and servants the payment of the costs charges and expenses of or connected with the transfer and for the redemption of the debenture stock of the company.	£300,000	Thirty years from the day of transfer.
(D) For the purchase of ground rents under the section of this Act of which the marginal note is "Power to Corporation to redeem ground rents."	The sum requisite.	Sixty years from the date or dates of borrowing.

(2) The Corporation may also with the consent of the Minister of Health borrow or raise at interest on the security of the city rate such further money as may be

[11 & 12 GEO. 5.] *Manchester* [Ch. cxix.]
Corporation (General Powers) Act, 1921.

necessary for the purposes of this Act and shall repay any money borrowed under this subsection within such period as may be prescribed by the said Minister. A.D. 1921.
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(3) The enactments mentioned or referred to in the Third Schedule to the Manchester Corporation Act 1914 to the extent indicated in that schedule and the following sections of that Act (namely):—

Section 80 (Power to use sinking fund instead of borrowing);

Section 81 (Returns to Local Government Board as to sinking funds); and

Section 82 (Power to use one form of mortgage for all purposes);

and section 89 (Amendment of provisions as to issue of bills) of the Manchester Corporation Act 1920 shall apply to all moneys to be borrowed or raised by the Corporation under this section as if the moneys had been authorised to be borrowed or raised by section 78 (Power to borrow) of the Manchester Corporation Act 1914.

69.—(1) As to any addition to the city rate made by the Corporation or under any precept from or at the instance or by the direction of the Corporation for the purposes or any of the purposes (A) (B) and (C) mentioned in subsection (1) of the section of this Act whereof the marginal note is “Power to borrow” the owner or occupier of any land used only as a railway constructed under the powers of any Act of Parliament for public conveyance or of any land used only as a canal or towing-path for the same shall be assessed in respect of the same in the proportion of one-fourth part only of the net annual value thereof as ascertained by the valuation list for the time being in force or if there be none by the rate for the relief of the poor made next before the making of such assessment. Railways and canals to be rated in certain cases at one-fourth only of net annual value thereof.

(2) The Minister of Health may from time to time by order make such regulations as seem to him necessary or proper respecting the form of the rates notices and accounts to be made used and kept by the overseers with respect to any addition made under the powers of this Act to any city rate and to any assessment in respect thereof and an order under this section shall be deemed to be an order within the meaning of section 98 of the Poor Law Amendment Act 1834.

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Application
of gas
revenue.

70.—(1) As from the thirty-first day of March nineteen hundred and twenty-two all moneys received by the Corporation by way of revenue from their gas undertaking in each year shall be applied in the following manner and for the following purposes:—

Firstly In payment of the working and establishment expenses and cost of or provision for maintenance renewal and repair of the gas undertaking of the Corporation:

Secondly In payment of the interest on the moneys borrowed or reborrowed for the purposes of such undertaking:

Thirdly In providing the requisite appropriations instalments or sinking fund payments in respect of any moneys borrowed or reborrowed for the purposes of such undertaking:

Fourthly In repayment to the city fund of any deficiency in the revenue of the Corporation in respect of such undertaking at any time hereafter made good out of that fund:

Fifthly In providing (if the Corporation think fit) a fund for working capital not exceeding four hundred thousand pounds but the amount set aside annually in the provision of such fund shall not exceed forty thousand pounds:

Sixthly In providing (if the Corporation think fit) a reserve fund by setting apart a yearly sum not exceeding one half per centum upon so much as is outstanding for the time being of the moneys borrowed or reborrowed for the purposes of such undertaking and either using the same for the purposes of the undertaking or investing the same and the resulting income thereof in statutory securities and accumulating the same at compound interest until such fund amounts to a sum equal to ten per centum of the moneys so outstanding and whenever the said fund amounts to that sum the income therefrom shall be applied in the same manner as moneys received by the Corporation by way of revenue in respect of the said undertaking:

Provided that if and whenever the said reserve fund shall fall below the said last-mentioned sum the Corporation may set apart such yearly sum as aforesaid until the said reserve fund shall again amount to such last-mentioned sum.

[11 & 12 GEO. 5.] *Manchester* [Ch. cxix.]
Corporation (General Powers) Act, 1921.

(2) The residue (if any) of any such moneys shall be carried forward to the revenue account of such undertaking for the next succeeding year and shall whenever and so soon as the amount so carried over exceeds the sums required to meet the purposes secondly and thirdly above mentioned for one year be applied to the reduction of the price of gas supplied by the Corporation. A.D. 1921

71. The accounts of the Corporation under this Act shall be audited in like manner and with the like incidents as the like accounts of the Corporation. Audit of accounts.

72. Any expenses in the execution by the Corporation of this Act with respect to which no other provision is made may be defrayed by the Corporation out of the city rate. Expenses of execution of Act.

73. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed and ascertained by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the city rate or partly out of the city rate and partly out of the revenue of the gas undertaking of the Corporation as they may determine. Costs of Act.

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The SCHEDULES referred to in the
 foregoing Act.

THE FIRST SCHEDULE.

DESCRIPTION OF PROPERTIES OF WHICH PORTIONS ONLY
 MAY BE REQUIRED BY THE CORPORATION.

Area.	Numbers on deposited Plans.
Rural district of Bucklow township of Carrington— Gas mains - - - - -	19 20 22.
Urban district of Stretford— Gas mains - - - - -	9.

THE SECOND SCHEDULE.

GAS LANDS.

(1) Lands containing seventy-nine acres or thereabout situate in the townships of Partington and Carrington in the rural district of Bucklow in Cheshire on the easterly side of Manchester Road and bounded by a line commencing at a junction of that road with Common Lane thence following the easterly side of Manchester Road in a southerly direction to a point twenty-five yards or thereabouts measured in a north-easterly direction from the bridge carrying the said road over the Manchester Ship Canal Company's railway thence in a south-easterly direction along the northerly side of the said railway to Sinderland Road thence along the westerly side of Sinderland Road in a northerly direction for a distance of three hundred and fifty-seven yards or thereabouts thence in a north-westerly direction along the southerly fence of Asphodel Farm for a distance of one hundred and fifty-seven yards or thereabout thence in a north-easterly direction to a point in Common Lane forty-seven yards or thereabout measured in a north-westerly

direction from the north-west corner of Asphodel Farm thence along the south-westerly side of Common Lane in a north-westerly direction to the point of commencement. A.D. 1921.

(2) Lands containing eighty-two acres or thereabout situate in the said townships of Partington and Carrington on the south-easterly side of Manchester Road and bounded by a line commencing at a point on the south-easterly side of the said road thirty-three yards or thereabout measured in a south-westerly direction from the bridge carrying the Cheshire Lines Railway over Manchester Road thence along the south-easterly side of Manchester Road in a south-westerly direction for a distance of one hundred and sixty-six yards or thereabout thence in a south-easterly direction along a fence for a distance of two hundred and fifty-three yards or thereabout thence in a south-westerly direction for a distance of sixty yards or thereabout thence in a south-easterly direction to a point in an old road thence along the north-westerly side of the old road in a south-westerly direction for a distance of thirty-three yards or thereabout thence along the north-easterly side of an occupation road in a south-easterly direction to its junction with Partington Road thence along the northerly side of Partington Road to its junction with Sinderland Road thence along the westerly side of Sinderland Road in a northerly direction to the southerly boundary of the Cheshire Lines Railway thence along the said boundary in a westerly direction to the point of commencement.

THE THIRD SCHEDULE.

AGREEMENT WITH THE STRETTFORD GAS COMPANY.

AN AGREEMENT made the eighth day of February nineteen hundred and twenty-one between the STRETTFORD GAS COMPANY (hereinafter called "the company") of the one part and the LORD MAYOR ALDERMEN AND CITIZENS OF THE CITY OF MANCHESTER (hereinafter called "the Corporation") of the other part.

WHEREAS by the Stretford Gas Acts 1862 to 1917 the company were incorporated and powers were conferred upon them for the supply of gas in accordance with the terms of those Acts as modified by the Stretford Gas (Standard of Calorific Power) Order 1917 within the limits of supply prescribed by the said Acts And whereas by the Manchester General Improvement Act 1851 (section 6) the Corporation were authorised to do all such acts as they should think necessary for lighting the city and

A.D. 1921. neighbourhood thereof and to supply gas upon such terms as should be agreed upon between them and the persons supplied therewith And whereas by an agreement dated the third day of November eighteen hundred and ninety-nine between the Corporation of the one part and the company of the other part it was mutually agreed and declared that a line delineated on a plan thereunto annexed extending from the Manchester Ship Canal to the River Mersey was considered to be and should be the boundary line between the respective districts of the Corporation and the company in relation to the supply of gas in Stretford Chorlton-cum-Hardy and neighbourhood and such agreement contained suitable provisions for giving effect thereto And whereas with the sanction of the Local Government Board the rights of the company of supplying gas in the area formerly comprising the district of Chorlton-cum-Hardy but now included in the city of Manchester and all authorities powers and privileges of the company in that area were by an indenture dated the twenty-sixth day of March nineteen hundred and six and made between the company of the one part and the Corporation of the other part conveyed assured and transferred by the company to the Corporation and the said area thereupon ceased to be within the limits of the company And whereas by section 44 of the Manchester Corporation Act 1908 it was enacted that from and after the passing of that Act (the first day of August nineteen hundred and eight) the Acts of Parliament relating to the gas undertaking of the Stretford Gas Company should cease to apply to or be in force within the township of Chorlton-cum-Hardy within the city And whereas the company have agreed subject to the approval of Parliament to sell and transfer their undertaking to the Corporation upon and subject to the terms and conditions hereinafter contained Now therefore it is hereby agreed as follows :—

1. The company shall sell and the Corporation shall purchase as a going concern the whole of the undertaking of the company with all and singular their real and personal properties of whatever tenure goodwill assets and effects of whatever nature or kind powers rights privileges liberties and authorities Without derogating from the generality of the foregoing description the undertaking of the company includes—

- (A) The freehold and leasehold lands and hereditaments particulars of which are set out in the First Schedule hereto subject to the several rents covenants conditions restrictions powers and remedies exceptions and reservations in such schedule mentioned or referred to with all buildings and erections standing and being on such land or parts thereof :
- (B) All fixed and loose machinery plant works mains pipes stock in trade fixtures fittings tools instruments furniture and effects whatsoever of the company :

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(c) The benefit of all agreements as to or relating to the sale and supply of gas and residual products arising therefrom by or to the company and all rights powers liberties privileges and authorities whatsoever of or to which the company are entitled at law or in equity on the day of transfer as hereinafter defined :

(d) All moneys of the company including the reserve fund cash in hand and cash standing to the credit of the company at their bankers and all gas rents and charges which may be due or accruing due to the company on the day of transfer :

(e) The benefit of all contracts agreements obligations and engagements entered into by the company prior to the day of transfer in connexion with the carrying on of the business of the undertaking of the company particulars of which are set forth in the Second Schedule hereto and of any other contracts and agreements which may be entered into by the company between the date hereof and the day of transfer but subject to the payment observance and performance of the respective rents or sums covenants conditions agreements liabilities obligations and engagements on the part of the company to be paid performed or observed in connexion with the said contracts agreements obligations and engagements and the Corporation shall be deemed to have full notice of all such rents covenants agreements conditions liabilities and engagements contained in such contracts and agreements and of the terms and contents thereof respectively.

2. As part of the consideration for the said sale the Corporation shall pay to the company the sum of two hundred and eighty-five thousand pounds.

3. As other part of the consideration for the said sale the Corporation shall either take over and assume full liability to repay to the holder or holders of the debenture stock for ten thousand pounds issued by the company the sum of ten thousand pounds thereby secured or in case the said debenture holder or holders shall have been repaid by the company by reason of the said debenture becoming due before the day of transfer the sum of ten thousand pounds so paid by the company shall be repaid to the company by the Corporation in addition to the said sum of two hundred and eighty-five thousand pounds.

4. As the residue of the consideration for the said sale the Corporation shall pay and discharge all the debts and obligations whatsoever of the company owing or outstanding on the day of transfer and properly incurred in pursuance of the statutory powers of the company (including any sum owing on the said day by the company to their bankers whether the amount of

A.D. 1921. such indebtedness is or is not within the statutory borrowing powers of the company) but excepting the amount due to the shareholders of the company in respect of their several shares in the company and any dividends accrued due thereon and shall indemnify the company against the same.

5. The purchase shall be completed and the purchase moneys paid and satisfied at the office of the company's solicitor Mr. G. C. Adams of 29 Princess Street in the city of Manchester upon the day of transfer and thereupon the company and all other necessary parties shall execute and do all such assurances and things for vesting the said premises in the Corporation and giving to the Corporation the full benefit of this agreement as shall be reasonably required by the Corporation. The expression "day of transfer" for all purposes of this agreement shall be the twenty-fourth day of December next after an Act of Parliament confirming this agreement shall have received the Royal Assent.

6. The company shall up to the day of transfer keep the undertaking in a good state and condition and continue to manage and carry on their undertaking in a businesslike manner and for their own benefit in the same manner as heretofore and they shall be at liberty to enter into all such contracts and engagements as they may think fit in the course of and for the purpose of carrying on their said undertaking upon the like or similar lines to those upon which the same has heretofore been carried on and the benefit of all such contracts (if any) shall be included in the sale and the Corporation as from the day of transfer shall perform and observe the obligations and conditions of the said contracts and engagements. Provided always that the company shall not after the date of this agreement enter into any contract involving expenditure on capital account to an amount exceeding one hundred pounds without first obtaining the consent in writing of the Corporation but such consent shall not be unreasonably withheld and shall not be required for the repayment of money borrowed.

7. If from any cause whatever the purchase shall not be completed on the day of transfer possession of the said undertaking and premises shall be retained by the company up to the actual day upon which the purchase shall be completed but in that event as from the day of transfer until the date of completion of the purchase the said undertaking shall be kept by the company in a good state and condition and be carried on by the company on behalf and for the account of the Corporation who shall be entitled to all moneys received by the company during that period and shall be responsible for all payments made by the company during the said period. On the completion of the purchase an adjustment of the said receipts and payments shall be made as between the Corporation and the company.

8. The Corporation shall also on completion pay to the company an amount equal to and sufficient to pay the directors'

fees and to enable the company to pay to their shareholders the maximum dividend in respect of their respective classes of shares allowed by the Acts of Parliament relating to the company for the portion of the then current half year to the actual day of completion and if and so far as a like dividend for the preceding half-year shall not have been paid before such actual day of completion then for such half-year also.

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9. The said lands and hereditaments set out in the First Schedule hereto are sold subject as before stated and with regard to the property numbered 7 in the said schedule to the rights of the tenant thereof and as to all the said premises to all rights relating to main party division or boundary walls or fences drains ways water rights and other easements The abstracts of title to the respective lands and hereditaments shall be delivered to the town clerk Manchester within one calendar month after the Act of Parliament confirming this agreement shall have received the Royal Assent.

10. Objections to and requisitions on title in respect of all matters appearing in the abstract or herein shall be delivered at or sent by post to the office of the company's solicitor within thirty days from the delivery of the abstract and all further objections and requisitions arising out of the replies to any former requisitions shall be sent within ten days from the delivery of such replies.

11. The title to the said freehold and leasehold properties set out in the First Schedule hereto shall commence—

- (A) As to the property numbered 1 in such schedule with an indenture of demise dated the twenty-fifth day of December eighteen hundred and fifty-four and made between Sir Humphrey de Trafford Baronet of the one part and Thomas Collier and Thomas Brundritt of the other part :
- (B) As to the property numbered 2 in the said schedule with an indenture of demise dated the twenty-first day of May eighteen hundred and sixty-four and made between the said Sir Humphrey de Trafford of the one part and the company of the other part :
- (C) As to the property numbered 3 in the said schedule with an indenture of demise dated the twenty-third day of October eighteen hundred and seventy-eight and made between the said Sir Humphrey de Trafford of the one part and the company of the other part :
- (D) As to the property numbered 4 in the said schedule with an indenture of conveyance dated the thirtieth day of November nineteen hundred and made between Sir Humphrey Francis de Trafford of the first part the Life Association of Scotland of the second part Edward Hugh Whitehead and Arthur Croxall Whitehead and

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Gainsborough Harward of the third part Godfrey Lewis Clark of the fourth part Ralph Burch Arthur Charles Davidson and Allan Herbert Davidson of the fifth part Frederick John Coverdale the Right Reverend Francis Mostyn and Constance Susannah Blount of the sixth part the said Frederick John Coverdale the said Francis Mostyn and Mary Louisa Mostyn of the seventh part and the company of the eighth part :

- (E) As to the property numbered 5 in the said schedule with an indenture of demise dated the twenty-third day of December nineteen hundred and eighteen and made between the Prudential Assurance Company Limited of the first part the Right Honourable Lady Mary Annette de Trafford Frederick Bartholomew Stapleton Bretherton and Charles Edmund de Trafford of the second part Humphrey Edmund de Trafford of the third part and the company of the fourth part :
- (F) As to the property numbered 6 in the said schedule with an indenture of conveyance dated the twenty-sixth day of June nineteen hundred and seven and made between Charles William Allen and William Noar of the first part John Lloyd and Charles Jones of the second part and Hugh Fullerton of the third part :
- (G) As to the property numbered 7 in the said schedule with an indenture of underlease dated the eighth day of March eighteen hundred and seventy-seven and made between Maria Eliza Baker and Edward Axon of the one part and John Baker of the other part.

12. The assurances to the Corporation shall contain covenants by the Corporation with the company for the payment of the respective yearly freehold and leasehold rents payable in respect of the properties respectively and for the observance and performance of the covenants conditions and agreements respectively affecting the same or any part or parts of any such freehold or leasehold hereditaments and to indemnify the company from and against all actions costs proceedings claims and demands in respect of such rents covenants conditions and agreements or in anywise relating thereto respectively.

13. The company will on the completion of the said purchase deliver to the Corporation all deeds agreements books of account plans reports descriptions of works vouchers letters and other records of the business and proceedings of the company and originals or copies of all other documents drafts or writings in the possession or under the control of the company or their servants relating to the undertaking of the company as the Corporation may require other than and except documents relating exclusively to the shareholders in and the constitution of the company Provided that the company their solicitor or agents shall be entitled to have access thereto and production

thereof and to make copies or extracts thereof and therefrom as may be necessary for any of the purposes of the company or the winding up thereof. A.D. 1921.

14. The company shall not unless required so to do pursuant to the Acts relating to their undertaking reduce the price of gas charged by the company to their consumers at the date of this agreement without the previous consent in writing of the Corporation.

15. On and after the transfer of the undertaking to the Corporation the officials staff and permanent employees of the company shall be taken over at such salaries wages emoluments and bonuses as shall not be less than the salaries wages emoluments and bonuses which shall be paid to and received by them respectively at the time of the transfer to the Corporation. Provided always that the company shall not increase the salaries wages emoluments and bonuses of any of such officials staff and permanent employees without first obtaining the written consent of the Corporation save and except in the case or cases of alterations which the company shall be called upon to make in order to comply with any award or agreement relating to gas workers or the manufacture of gas or the gas industry generally.

16. Such members of the officials staff and permanent employees of the company as are eligible shall be entitled as from the day of transfer to enjoy the benefits of any superannuation scheme the Corporation have or may establish.

17. If the Corporation within twelve months after the transfer of the undertaking decide to dismiss any of the officials staff or permanent employees of the company who shall have entered into the service of the Corporation under this agreement on the ground or for the reason that their services are no longer required such officials staff and employees shall be entitled to compensation under section 120 of the Local Government Act 1888 as if they had been officers of the Corporation and the period of service with the company of each such official or employee shall be reckoned for the purpose of such compensation as service with the Corporation.

18. The Corporation shall at their own expense promote and use their best endeavours to procure the passing of a Bill in the next ensuing session of Parliament with such provisions as may be necessary to confirm this agreement and authorise the company and the Corporation to carry the same into effect and shall in such Bill include such sections to provide for the winding up of the company and the distribution of the purchase money amongst the directors officers and shareholders of the company as the directors may require and the company shall aid and support the Corporation in obtaining the said Act and for that purpose shall supply to the Corporation all such information particulars and evidence in the possession of the company

A.D. 1921. — or of any of their officers and servants as the Corporation may reasonably require and the company by themselves their directors officers and servants shall support the Bill by evidence or otherwise as the Corporation may require and the Corporation shall pay the expenses of any such directors officers or servants of the company as shall at the request of the Corporation attend to give evidence or explanations before the parliamentary committee or committees or elsewhere in support of the said Bill or in any proceedings relating to obtaining parliamentary sanction to carry out the transfer of their undertaking by the company to the Corporation.

19. This agreement is subject to the approval of Parliament and to such alterations as may be made by Parliament therein and shall be scheduled to the Bill to be promoted by the Corporation as aforesaid but in the event of either House of Parliament making any material alteration in this agreement or in the provisions inserted in the Bill relating to the winding up of the company or the distribution of the purchase money it shall be competent to the company or the Corporation on giving notice to the other of them before the Bill is read the third time in the second House to withdraw from this agreement and in that case or in the event of the intended Bill failing to become law in the said session this agreement (subject as next hereafter provided) shall be void and of no effect.

20. If the Bill to be promoted by the Corporation as aforesaid be not passed by Parliament in the session nineteen hundred and twenty-one it shall be competent for the Corporation with the written consent of the company to renew the application in the next ensuing session of Parliament available for private Bill legislation.

21. On and from the passing of the Bill promoted by the Corporation for the purpose of giving effect to this agreement the secretary financial controller and the engineer of the gas department of the Corporation or any other duly authorised superior officer of the Corporation and their assistants shall be given access to the works and offices of the company during working hours and may inspect the works books papers records and writings of the company and inform and make themselves acquainted with the affairs of the company preparatory to the taking over of the undertaking on the day of transfer and the company shall direct the engineer secretary or other competent officers to give to the said secretary financial controller and engineer and their assistants such information and assistance relating to the affairs of the company as they may reasonably require Provided that the said secretary financial controller and engineer and their assistants shall not in any way impede or interfere with the carrying on of the company's undertaking until the date of completion of the purchase thereof.

[11 & 12 GEO. 5.] *Manchester* [Ch. cxix.]
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22. If any question difference or dispute shall arise between the company and the Corporation in relation to this agreement or the construction thereof or as to any matter or thing herein contained or as to anything not fully provided for or as to the rights duties or liabilities of either party hereunder such question difference or dispute shall be referred to a barrister at law (to be agreed upon by the parties hereto) or failing their agreement to be appointed on the application of either party by the Board of Trade and the provisions of the Arbitration Act 1889 or any statutory modification thereof shall apply to such reference and arbitration and to this agreement as if the same were a submission to arbitration under that Act. A.D. 1921.

23. On and after the completion of the transfer the company shall subsist only for the purpose of winding up their affairs.

24. This agreement is subject to the approval of the shareholders of the company and the directors of the company shall use their best endeavours to obtain such approval.

In witness whereof the parties hereto have hereunto affixed their respective common seals the day and year first before written.

THE FIRST SCHEDULE hereinbefore referred to.

1. All that plot of land in Stretford in the county of Lancaster as the same is marked out and described and shown in the plan drawn in the margin of an indenture of demise dated the twenty-fifth day of December eighteen hundred and fifty-four and made between Sir Humphrey de Trafford Baronet of the one part and Thomas Collier and Thomas Brundritt of the other part containing on the northerly side thereof forty yards on the easterly side thereof fifty yards on the southerly side thereof forty yards and on the westerly side thereof fifty yards and containing in the whole two thousand square yards of land or thereabouts bounded on the said northerly easterly and southerly sides by other part of the estate formerly of Humphrey Trafford Esquire and on the westerly side by land formerly reputed to belong to the trustees under the will of the late Duke of Bridgewater Together with all rights easements and appurtenances thereof Except and reserved all mines and minerals salt and alum rocks and salt springs with liberty for the person or persons for the time being entitled thereto or other person or persons by his her or their or any of their order at any time or times during the term thereby appointed to search for get and carry away the same but so that no pit shafts or engines be made or erected upon the surface of the said plot nor such surface be in any manner broken or

A.D. 1921.

damaged and so that there be caused thereby as little inconvenience as may be and that compensation be made for every injury that may be done to the erections on the said plot by the exercise of any of the said liberties or in consequence thereof And also except any way or right of way whether of necessity or otherwise upon or over the said part adjoining the said plot of the said estates formerly of the said Humphrey Trafford The said plot of land is leasehold for the term of nine hundred and ninety-nine years reserved by the said indenture of demise and is sold subject to a yearly rent of ten pounds eight shillings and fourpence thereby reserved and to the powers and remedies for recovery of the said rent and the covenants restrictions and agreements on the part of the lessee therein respectively contained.

2. All that plot of land whereof the area is represented as edged red in the plan endorsed upon an indenture of demise dated the twenty-first day of May eighteen hundred and sixty-four and made between the said Sir Humphrey de Trafford Baronet of the one part and the company of the other part and which plot is in Stretford aforesaid and contains superficially in square measure two thousand five hundred and fifty yards and in lineal measure of circumference the following lateral dimensions (namely) northern twenty-five yards eastern seventy yards southern sixty-five yards and western including the length having a northern aspect twenty yards forty yards and fifty yards and abuts northwardly eastwardly and southwardly on part of the Trafford estate and westwardly including as aforesaid on the plot of land first hereinbefore described And all and every the erections and buildings on the said plot Together with all rights and appurtenances except rights if any restricting the free use on any adjoining land or the conversion or appropriation at any time thereafter of such land for building or other purposes obstructive or otherwise and except and reserving minerals with liberty to search for and remove the same but so that the surface of the said plot and the space of ten yards next below such surface be not entered broken or otherwise injured and that compensation be made for every injury occurring to the said surface or any building or erection thereon Except and reserving the free running of water and soil in and through the sewers drains and channels for the time being in upon or under the same plot and the right of using for all purposes public streets or street or portions of streets if any for the time being upon the said land The said plot of land is leasehold for the term of nine hundred and ninety-nine years reserved by the said indenture of the twenty-first day of May eighteen hundred and sixty-four and is sold subject to a yearly rent of twenty-one pounds five shillings thereby reserved and to the powers and remedies for recovery of the said rent and the covenants restrictions and agreements on the part of the lessee therein respectively contained.

3. All that plot of land situate in Stretford aforesaid and containing superficially ten thousand and ten square yards and which as to form boundaries and lateral measurements is delineated and described in the plan endorsed on an indenture of demise dated the twenty-third day of October eighteen hundred and seventy-eight and made between the said Sir Humphrey de Trafford of the one part and the company of the other part and therein edged red and all that and those the gasometer and erections on part of the said plot Except and reserving all minerals with liberty to get and remove the same without injury to the surface and with compensation for damage and also the free running of water and soil and user of streets and the right to use or appropriate the adjoining lands similar to those contained in the said indenture of demise of the twenty-first day of May eighteen hundred and sixty-four The said plot of land is leasehold for the term of nine hundred and ninety-nine years reserved by the said indenture of demise and is sold subject to a yearly rent of one hundred and twenty-five pounds two shillings and sixpence thereby reserved and to the powers and remedies for the recovery of the said rent and the covenants restrictions and agreements on the part of the lessee therein respectively contained. A.D. 1921.

4. All that plot of land situate at Stretford aforesaid containing sixteen thousand superficial square yards or thereabouts including halves of Thomas Street and of a passage shown upon the plan thereupon endorsed and which plot as to form lateral dimensions and abutments is described on the said plan and thereon edged red Except and reserving mines and minerals free running of water and soil from adjoining hereditaments and to cleanse renew and repair sewers and drains similar to those reserved by the before-mentioned indentures of lease The plot of land is freehold and is subject to the payment of a perpetual yearly rentcharge of two hundred pounds created by an indenture of conveyance dated the thirtieth day of November nineteen hundred and made between Sir Humphrey Francis de Trafford of the first part the Life Association of Scotland of the second part Edward Hugh Whitehead and Arthur Croxall Whitehead and Gainsborough Harward of the third part Godfrey Lewis Clark of the fourth part Ralph Burch Arthur Charles Davidson and Allan Herbert Davidson of the fifth part Frederick John Coverdale the Right Reverend Francis Mostyn and Constance Susannah Blount of the sixth part the said Frederick John Coverdale and the Right Reverend Francis Mostyn and Mary Louisa Mostyn of the seventh part and the company of the eighth part and to the powers and remedies for recovering and compelling payment of the said rentcharge and the covenants conditions and restrictions as to buildings and otherwise therein contained and on the part of the grantees to be observed and performed.

A.D. 1921.
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5. All that plot of land whereof the area is represented as edged red in the plan endorsed upon an indenture of demise dated the twenty-third day of December nineteen hundred and eighteen and made between the Prudential Assurance Company of the first part the Right Honourable Mary Annette de Trafford (commonly called Lady Mary Annette de Trafford) Frederick Bartholomew Stapleton Bretherton and Charles Edmund de Trafford of the second part Humphrey Edmund de Trafford of the third part and the company of the fourth part and which plot is in Stretford aforesaid and includes part (namely) the part shown in the said plan of Longford Road half (namely) six yards in width of Ashover Street and half (namely) four feet six inches in width of an intended public passage and contains four thousand two hundred and fifty superficial square yards or thereabouts and whereof the abuttals and lateral dimensions are more particularly indicated on the said plan Except mines and minerals and powers of getting the same and the free running of water and soil similar to those contained in the above-mentioned indentures of demise The said plot of land is leasehold for the term of nine hundred and ninety-nine years reserved by the said indenture of demise and is sold subject to a yearly rent of fifty-one pounds one shilling and fourpence thereby reserved and to the powers and remedies for recovery of the said rent and covenants restrictions and agreements on the part of the lessees therein respectively contained And in the said indenture are contained covenants by the company to keep open and free from obstruction such parts of the said land as form or are intended to form public streets or passages and to make form and complete the roadways and footways on the said parts of the said streets and passage with all proper drains and to maintain the same in good repair and repay all moneys which the lessors may be called upon to pay in respect thereof and to the making maintaining and cleansing of sewers and drains thereunder and powers of entry and distress upon the hereditaments being numbered 3 and 4 in this schedule and certain covenants restrictions powers and remedies for securing the payment of the said yearly rent of fifty-one pounds one shilling and fourpence and otherwise.

6. All that plot of land situate in Glebelands Road Ashton on Mersey in the county of Chester containing in the whole ten thousand seven hundred and forty-nine superficial square yards or thereabouts and more particularly delineated and described in the plan endorsed upon an indenture of conveyance dated the nineteenth day of July nineteen hundred and eighteen and made between Hugh Fullerton of the one part and the company of the other part The property is freehold and is subject (if and so far as the same are enforceable) to a yearly chief or quit rent of three shillings and to suit and service at the Court Baron to be from time to time held and kept for the manor of Ashton on Mersey aforesaid and to certain covenants and conditions.

7. All that plot of land fronting Derbyshire Lane in Stretford A.D. 1921.
aforesaid particularly delineated in the plan endorsed upon an
indenture of underlease dated the eighth day of March eighteen
hundred and seventy-seven and made between Maria Eliza Baker
and Edward Axon of the one part and John Baker of the other
part and therein edged blue and containing in the whole two
hundred and fifty-seven and seven-ninths square yards of land
or thereabouts And also all that messuage or dwelling-house
erected on the said plot of land and numbered 52 Derbyshire
Lane aforesaid This property is leasehold for the residue of a
term of nine hundred and eighty years (less the last seven days
thereof) at the yearly rent of two pounds eighteen shillings
created by the said indenture of underlease and to the covenants
and conditions powers and remedies in the said indenture con-
tained or referred to.

The SECOND SCHEDULE hereinbefore referred to.

1. 17th January 1872.	Minutes of meeting of directors of the company.	As to boundary lines of supply in Baguley and Ashton on Mersey.
2. 5th July 1886 -	The Corporation and the company.	Agreement as to the boundary line of supply of gas in Chorlton-cum-Hardy.
3. 14th October 1896.	Manchester Ship Canal Company of the one part and the company of the other part.	Agreement as to construction and maintenance of gas main.
4. 8th February 1899.	The company and the Manchester Ship Canal Company.	Agreement as to erection and maintenance of a coal conveyor at Stretford.
5. 3rd November 1899.	The Corporation of the one part and the company of the other part.	Agreement as to district of supply of gas at Stretford and Chorlton-cum-Hardy.
6. 21st June 1905 -	A. J. Marsh of the one part and the company of the other part.	Agreement of tenancy of premises in Tatton Buildings Sale.
7. 4th July 1905 -	Urban district council of Sale of the one part and the company of the other part.	Agreement as to gas main at Crossford Bridge.

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8. 26th March 1906	The company of the one part and the Corporation of the other part.	Assignment of the rights of the company in Chorlton-cum-Hardy.
9. 4th September 1906.	Urban district council of Sale of the one part and the company of the other part.	Agreement as to gas main at Crossford Bridge.
10. 22nd July 1908 -	The Manchester South Junction and Altrincham Railway Company of the one part and the company of the other part.	Agreement as to gas main at Dane Road Sale.
11. 20th August 1908.	De Trafford Trustees of the one part and the company of the other part.	Demise of right to lay gas main through land in Stretford.
12. 2nd October 1908	The Manchester Ship Canal Company of the one part and the company of the other part.	Agreement as to gas main at Dane Road Sale.
13. 2nd October 1908.	The Manchester Ship Canal Company of the one part and the company of the other part.	Agreement as to gas main near Waters Meeting Stretford.
14. 6th October 1908.	The Stretford Urban District Council of the one part and the company of the other part.	Agreement as to gas main adjacent to Gorsehill Footbridge.
15. 12th March 1913	Thomas Robert Ollershaw of the one part and the company of the other part.	Agreement of tenancy of premises 1113 Chester Road Stretford.
16. 26th August 1914.	The Cheshire Lines Committee of the one part and the company of the other part.	Agreement as to gas main in Stretford.
17. 28th August 1914.	The Manchester Ship Canal Company of the one part and the company of the other part.	Agreement as to gas main over the Bridge-water Canal.
18. 28th October 1914.	The company and the Earl of Ellesmere.	Agreement as to gas main near Waters Meeting.

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19. 22nd May 1920 -	Manchester South Junction and Altrincham Railway of the one part and the company of the other part.	Agreement as to gas main at Cricket Ground Station Old Trafford.
20. 20th September 1920.	The Stretford Urban District Council of the one part and the company of the other part.	Agreement under seal as to erection of a telpher track.
21. 22nd December 1920.	The Manchester Ship Canal Company and the company.	Agreement as to a telpher track.

The common seal of the Stretford Gas Company was hereunto affixed in the presence of

W. A. NICHOLLS }
E. HIBBERT } Directors.

JOSEPH HALL Secretary.



The common seal of the Corporation of the city of Manchester was hereunto affixed in pursuance of an Order of the Council of the said city in the presence of

WILLIAM KAY
Lord Mayor.
THOMAS HUDSON
Town Clerk.



THE FOURTH SCHEDULE.

PROVISIONS OF THE STRETTFORD GAS ACTS 1862 TO 1917 SAVED FROM REPEAL.

THE STRETTFORD GAS ACT 1862.

43. The Company may for the purposes of their undertaking purchase take and hold (by agreement but not otherwise) any lands and hereditaments not exceeding in the whole three acres which the Company may from time to time require for the pur- Power to purchase lands.

[Ch. cxix.] *Manchester* [11 & 12 GEO. 5.]
Corporation (General Powers) Act, 1921.

A.D. 1921. — poses of their works and undertakings which three acres shall include the site of the existing works.

Describing
lands.

44. The lands which the Company may use for the manufacture of gas are the lands at present occupied by the Company and being all that piece or parcel of ground situate and being in the township of Stretford in the parish of Manchester in the county of Lancaster forming part of the estates of Humphrey Trafford Esquire bounded on the northerly easterly and southerly sides thereof by other part of the said estates formerly belonging to Humphrey Trafford Esquire but now belonging to Sir Humphrey de Trafford Baronet and on the westerly side thereof by land belonging or reputed to belong to the trustees under the will of the late Duke of Bridgewater which said plot of land contains three thousand two hundred and fifty square yards or thereabouts and the works for the manufacture of gas shall not be erected on any other lands.

Company
not to
construct
works &c.
over Duke of
Bridge-
water's Canal
without con-
sent.

60. Provided that except with the consent in writing of the trustees for the time being acting in execution of the trusts of the will of the Most Noble Francis late Duke of Bridgewater their heirs or assigns or the acting trustee for the time being under such will so far as relates to the Duke of Bridgewater's Canal and the towing-path and banks thereof and except with the consent in writing of the company of proprietors of the Mersey and Irwell Navigation or their principal agent for the time being so far as relates to any side cut or canal appertaining to or forming part of the Mersey and Irwell Navigation and the towing-path and banks thereof nothing in this Act contained shall authorise or empower the Company to lay down place erect construct or execute any works through under over or across or in or upon the canal of the said trustees called "the Duke of Bridgewater's Canal" or any towing-path or bank thereof or through under over or across or in or upon any side cut or canal appertaining to or forming part of the Mersey and Irwell Navigation or any towing-path or bank thereof save and except to lay down place and erect and from time to time to maintain alter repair remove and replace under and subject to the provisions of this Act and the Acts incorporated therewith any mains service pipes pillars posts and lamps over across and upon any bridge except swivel or bascule bridges erected or to be hereafter erected over the said Duke of Bridgewater's Canal or over any side cut or canal appertaining to or forming part of the Mersey and Irwell Navigation or along any existing roadway under the said Duke of Bridgewater's Canal or under any cut or canal appertaining to or forming part of the Mersey and Irwell Navigation whereby any public highway township road or turnpike road shall pass or be carried over or under the said Duke of Bridgewater's Canal or over or under any side cut or canal appertaining to or forming part of the Mersey and Irwell Navigation.

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Corporation (General Powers) Act, 1921.

THE STRETFORD GAS ACT 1877.

A.D. 1921.

3. The Stretford Gas Act 1862 (in this Act referred to as "the Act of 1862") and this Act shall be construed together except so far as such construction would be inconsistent with or repugnant to the provisions of this Act.

Construc-
tion of Act.

6. Subject to the provisions of this Act and of the Act of 1862 and on the site and within the limits by the last-mentioned Act authorised for the erection by the Company of gasworks and the manufacture of gas the Company may maintain alter extend enlarge and improve their existing gasworks and may erect make construct and maintain other and additional works for the manufacture of gas and of the several residual products matters and things arising from the manufacture of gas and all other necessary works appliances and conveniences necessary for the production manufacture storage and distribution of gas or the manufacture conversion utilisation and storage of such residual products matters and things or any of them but no land shall be used by the Company for the purpose of manufacturing gas or residual products except the lands limited for that purpose by and described and set forth in the forty-fourth section of the Act of 1862 and in the schedule to this Act.

Power to
construct
works.

Gas not to be
manufac-
tured on
other lands
than those
limited by
Stretford
Gas Act
1862.

SCHEDULE referred to in the foregoing Act.

The lands which the Company may now use for the manufacture of gas under the powers of the Act of 1862.

The lands at present occupied by the Company and being all that piece or parcel of ground situate and being in the township of Stretford in the parish of Manchester in the county of Lancaster forming part of the estates or reputed estates of Humphrey Trafford bounded on the northerly easterly and southerly sides thereof by other part of the estates formerly belonging or reputed to belong to Humphrey Trafford but now belonging or reputed to belong to Sir Humphrey de Trafford Bart. and on the westerly side thereof by land belonging or reputed to belong to the trustees under the will of the late Duke of Bridgewater which said plot of land contains 3,250 square yards or thereabouts.

THE STRETFORD GAS ACT 1899.

8. The Company may for the purposes of their undertaking purchase take and hold (by agreement but not otherwise) in addition to the lands described in the First Schedule to this Act any lands and hereditaments not exceeding in the whole five acres which the Company may require for the purposes of their works and undertaking but the Company shall not create or

Power to
purchase
lands by
agreement.

[Ch. cxix.] *Manchester* [11 & 12 GEO. 5.]
Corporation (General Powers) Act, 1921.

A.D. 1921. — permit a nuisance on any such lands or use the same for the manufacture of gas or of any product resulting from any materials employed in such manufacture.

Power to hold sell and lease lands. 9. The Company may hold any lands which they may acquire under the authority of this Act free from the provisions of the Lands Clauses Consolidation Act 1845 or of the existing Acts of the Company with respect to superfluous lands and they may grant a lease or leases of and sell and dispose of their estate and interest in any lands they may not for the time being require for the purposes of their undertaking.

Powers as to construction and maintenance of gasworks &c. 13. Subject to the provisions of this Act the Company may upon the lands described in Part II. and Part III. of the First Schedule to this Act erect lay down provide and construct maintain alter improve enlarge extend and renew or discontinue gasworks retorts gasholders receivers machinery drains sewers mains approaches and other works apparatus and conveniences and may do all such acts as they may think proper for making storing and supplying gas and may make store and supply gas accordingly and may store sell supply and deal in coke tar pitch oil lime ammoniacal liquor carburine spirit and all other products resulting from such making of gas.

Company not to use Thomas Street. 41. The Company shall not make use of Thomas Street in the urban district of Stretford for the carriage of tar or of ammoniacal liquor and in the event of their contravening the provisions of this section they shall be liable to a penalty not exceeding forty shillings for every such offence and such penalty shall be recoverable summarily upon the complaint of the Stretford Urban District Council.

The SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

PART I.

The lands in the parish of Stretford now belonging or reputed to belong to the Company containing about three thousand two hundred and fifty square yards and on which they are authorised to erect gasworks and to make gas and to manufacture residual products.

PART II.

Certain lands in the said parish of Stretford belonging or reputed to belong to the Company and forming part of their existing gasworks containing about eleven thousand three hundred and ten square yards and bounded on the north-east north-west

and south-east by land belonging or reputed to belong to Sir Humphrey Francis de Trafford Baronet and on part of the south-west side by land belonging or reputed to belong to the Company and on the remaining part of the south-west side by a road belonging or reputed to belong to the Manchester Ship Canal Company. A.D. 1921.

PART III.

Certain lands in the said parish of Stretford belonging or reputed to belong to the said Sir Humphrey Francis de Trafford and in the occupation of the executors of the late George Foster containing about sixteen thousand square yards and bounded on the north-east by Thomas Street on the north-west by other lands belonging or reputed to belong to the said Sir Humphrey Francis de Trafford on the south-west partly by the gasworks of the Company and partly by other lands belonging or reputed to belong to the said Sir Humphrey Francis de Trafford and on the south-east by other lands belonging or reputed to belong to the said Sir Humphrey Francis de Trafford.

THE STRETFORD GAS ORDER 1917 CONFIRMED BY THE GAS AND WATER PROVISIONAL ORDERS ACT 1917.

5. The Stretford Gas Company shall be the undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers." Undertakers.

6.—(1) The Undertakers may—

(a) Upon any lands upon which they are by any Act or Order authorised to make and store gas work up and convert the residual products arising directly or indirectly from the manufacture of gas by them;

(b) Purchase the residual products arising from the manufacture of gas by other gas undertakers and therewith upon the said lands manufacture other products of the same kind as the Undertakers are manufacturing from their own residual products Provided that the quantity of any residual product so purchased by the Undertakers in any year shall not exceed one-third of the quantity of the like residual product which shall in that year arise directly or indirectly from the manufacture of gas by them;

(c) Purchase from other gas undertakers and elsewhere and use the materials required to work up and convert the residual products so arising from their own manufacture of gas or purchased as aforesaid;

but the Undertakers shall not manufacture chemicals exclusively from raw materials purchased from sources other than gas undertakings or in the manufacture of which the use of residual products produced by the Undertakers or purchased from other gas undertakings is merely subsidiary.

Power to use lands for manufacture of residual products.

[Ch. cxix.] *Manchester* [11 & 12 GEO. 5.]
Corporation (General Powers) Act, 1921.

A.D. 1921.

(2) The powers conferred by this section shall not prejudice or affect the covenants and conditions as to buildings erections and building lines contained in an indenture of conveyance dated the thirtieth day of November nineteen hundred made between Sir Humphrey Francis de Trafford Baronet and others of the first seven parts and the Undertakers of the eighth part being the conveyance to the Undertakers of the land described in Part III. of the First Schedule to the Stretford Gas Act 1899.

(3) Section 14 (Gas &c. not to be manufactured except on lands scheduled) of the Stretford Gas Act 1899 and the words "but not from the working up manufacture or conversion of residual products" in section 13 (Powers as to construction and maintenance of gasworks &c.) of that Act are hereby repealed.

For protec-
tion of Stret-
ford Urban
District
Council.

7. The following provisions for the protection and benefit of the Stretford Urban District Council (in this section called "the council") shall except so far as may otherwise be agreed between the Undertakers and the council apply and have effect (that is to say):—

- (1) The Undertakers shall not cause or allow any effluent arising in the manufacture of gas or in the working up manufacture or conversion of residual products to pass directly or indirectly into any drain or sewer vested in the council or into any stream or watercourse unless they shall have freed such effluent from all noxious matter which would injuriously affect or deteriorate any drain or sewer or the contents thereof or the purity or quality of the water in any stream or watercourse :
- (2) Any person authorised in writing in that behalf by the council and producing his authority on being required to do so by the Undertakers may at any reasonable time enter upon any lands and works of the Undertakers and inspect the sewers and drains thereon for the purpose of ascertaining whether the provisions of this section are duly complied with and may take samples of any such effluent passing or intended to pass into any such sewer drain stream or watercourse and the Undertakers shall afford to such person reasonable facilities for the purposes of this subsection :
- (3) If the Undertakers fail or neglect within a reasonable time to comply with any of the provisions contained in this section after the council shall have given notice of such failure or neglect to the Undertakers or have left the same at the principal office of the Undertakers the Undertakers shall be liable to a penalty not exceeding ten pounds and to a further penalty not exceeding ten pounds for every day on which such failure or neglect shall continue and any penalty under this section may be recovered in a summary manner :

[11 & 12 GEO. 5.] *Manchester* [Ch. cxix.]
Corporation (General Powers) Act, 1921.

- (4) If any question or difference shall arise under this section A.D. 1921.
between the Undertakers and the council it shall be
determined by an arbitrator to be appointed on the
application of either party by the Local Government
Board and the provisions of the Arbitration Act 1889
shall apply to any such arbitration.

THE FIFTH SCHEDULE.

LOCAL ACTS AND ORDERS IN CONTINUATION OF THOSE
SPECIFIED IN THE THIRD SCHEDULE TO THE
MANCHESTER CORPORATION ACT 1909.

Date.	Title.
9 Edw. VII. c. lvii. -	The Manchester Corporation Act 1909.
September 24th 1910 -	The County Borough of Manchester Con- firmation Order 1910.
1 & 2 Geo. V. c. cviii. -	The Manchester Corporation Act 1911.
3 & 4 Geo. V. c. cxxxi.-	The Manchester Order 1913 confirmed by the Local Government Board's Pro- visional Orders Confirmation (No. 7) Act 1913.
3 & 4 Geo. V. c. cxxxvii.	The Manchester (Extension) Order 1913 con- firmed by the Local Government Board's Provisional Orders Confirmation (No. 13) Act 1913.
4 & 5 Geo. V. c. cxlvi. -	The Manchester Corporation Act 1914.
February 7th 1916 -	The Manchester Confirmation Order 1916.
9 & 10 Geo. V. c. lxxvi. -	The Manchester Order 1919 confirmed by the Local Government Board's Pro- visional Orders Confirmation (No. 2) Act 1919.
9 & 10 Geo. V. c. cxix. -	The Manchester Corporation Act 1919.
June 8th 1920 -	Order numbered 66067 of the Minister of Health.
10 & 11 Geo. V. c. cxiii. -	The Manchester Order 1920 confirmed by the Ministry of Health Provisional Orders Confirmation (No. 6) Act 1920.
10 & 11 Geo. V. c. xcvii.	The Manchester Corporation Act 1920.

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